

Andhra Pradesh Farmers' Management of Irrigation Systems (conduct of Elections) Rules, 2003

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State of Andhra Pradesh - Act

Andhra Pradesh Farmers' Management of Irrigation Systems (conduct of Elections) Rules, 2003

ANDHRA PRADESH

India

Andhra Pradesh Farmers' Management of Irrigation Systems (conduct of Elections) Rules, 2003

Rule

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Andhra Pradesh Farmers' Management of Irrigation Systems (conduct of Elections) Rules, 2003

Published vide Notification No. G.O. Ms. No. 47, Irrigation and Command Area Development (CAD-IV), dated
04.04.2003

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No. G.O. Ms. No. 47. - In exercise of the powers conferred by Section 43 read with Sections 4, 5, 6, 7, 8, 10, 14 & 15 of
the Andhra Pradesh Farmers Management of Irrigation System Act, 1997 (Andhra Pradesh Act
11 of 1997

) as amended from time to time read with the Andhra Pradesh Farmers Managements of irrigation Systems (second Amendment) Ordinance, 2002 and in supersession of the Andhra Pradesh Farmers Management of Irrigation Systems Rules, 1997 issued in G.O.Ms. No. 45, Irrigation & CAD (CAD-IV) Department, dated 30-4-1997 and subsequently amended from time to time by G.O.Ms.No. 65, Irrigation & CAD (CAD-IV) Department, dated 02-6-1997, G.O.Ms.No. 95, Irrigation & CAD (CAD-IV) Department, dated 03-7-1997, G.O.Ms.No. 124, Irrigation & CAD (CAD-IV) Department, dated 30-8-1997, G.O.MS.No.99, Irrigation & CAD (CAD-IV). Department, dated 8-9-1997 and G.O.Ms. No. 130, Irrigation & CAD (CAD-IV) Department, dated 8-9-1997 in so far as they relate to the elections to the Water Users Associations & other bodies, the Governor of Andhra Pradesh hereby makes the following rules.

1.

Short title.

- These rules may be called the Andhra Pradesh Farmers' Management of Irrigation Systems (conduct of Elections) Rules, 2003.

2.

Definitions.

- In these rules unless the context otherwise requires,

(a)

"Act" means the Andhra Pradesh Farmers Management of Irrigation Systems Act, 1997 with latest amendments.

(b)

"Authorised Officer" means an officer authorized by the District Collector not below the rank of a Deputy Tahsildar.

(c)

"Competent Authority" means the officer appointed under Section 21 of the Act.

(d)

"District Munsiff", "Subordinate Judge" and "District Judge" mean the District Munsiff, the Subordinate Judge and the District Judge appointed under the Andhra Pradesh Civil Courts Act, 1972.

(e)

"Election Authority" means the Commissioner of the Command Area Development Authority, or any other officer having jurisdiction specified in Rule 3.

(f)

"Form" means a form appended to these rules.

(g)

"Farmers Organisation" means Water Users Association at the primary level. Distributory Committee at the secondary level and Project Committee at the project level.

(h)

"Notice" means notice appended to these rules.

(i)

"Upper reaches" means the ayacut comprising of 50 percent of the number of Territorial Constituencies which are adjacent to and near by to the entry point of the water course based on the hydraulic particulars within the jurisdiction of the Water Users Association.

(j)

"Lower reaches" means the ayacut of a Water Users Association covered by the remaining 50 percent of the number of the Territorial Constituencies.

(k)

The words and expressions used but not defined in these Rules shall have the respective meanings assigned to them in the Act.

Chapter I

Administrative machinery

3.

Election Authority.

- The Commissioner appointed under Section 33 of the Andhra Pradesh Farmers Management of Irrigation Systems Act, 1997 shall be the Election Authority for the purpose of conducting elections under the said Act.

4.

District Election Authority.

(1)

The District Collector shall be the District Election Authority. The functions of the Election Authority under these Rules may also be performed by the District Election Authority within his jurisdiction, unless specifically otherwise provided.

(2)

Subject to the general superintendence, direction and control of the Election Authority, the District Election Authority shall be responsible for the conduct, co-ordination and supervision of all works in connection with holding of elections of members of the Territorial Constituencies, President and Vice-President of Water Users Associations, President and Vice-president of Distributary Committees, and the Chairman and Vice-Chairman of Project Committees.

(3)

The superintendence, direction, control and conduct of elections in Farmers Organizations in the State, in ordinary vacancies and casual vacancies shall be filled by the District Election Authority for the purpose of conducting elections under the Act.

(4)

The Joint Collector of the District shall be the Additional District Election Authority.

(5)

The Revenue Divisional Officer or the Sub-Collector, as the case may be, in the District shall be the Deputy District Election Authority.

(6)

The Additional District Election Authority and the Deputy District Election Authority shall perform such of those functions as may be assigned from time to time to them, by the District Election Authority.

(7)

The District Election Authority may authorize in writing, the Additional District Election Authority or the Deputy District Election Authority to exercise in any local area in the District in regard to any Water Users Association or Distributary committee or Project Committee in that area, any of the powers vested in him under these Rules.

5.

Election Officer.

(1)

For conduct of elections to fill the posts in Farmers Organizations, the District Election Authority shall designate, by order an officer as Election Officer, as specified hereunder:

Election to the post in Farmers Organization

Cadre of the officer to be designated as

Election Officer

(a) Water Users Association of Major, Medium and Minor Irrigation system

A Gazetted Officer of the State Government or of local authority, not below the rank of Mandal Revenue Officer.

(i) Member of Territorial Constituency:

(ii) President: and

(iii) Vice-President

(b) Distributary Committee of Major Irrigation systems

An Officer not below the rank of Revenue Divisional Officer or Deputy Director or Executive Engineer.

(i) President: and

(ii) Vice-President

(c) Project Committee of Medium Irrigation Systems

An Officer not below the rank of Revenue Divisional Officer or Deputy Director or Executive Engineer.

(i) Chairman: and

(ii) Vice-Chairman

(d) Project Committee of Major Irrigation Systems

An officer not below the rank of Joint Director or Superintending Engineer.

(i) Chairman: and

(ii) Vice-Chairman

Provided that, in case the Officers mentioned above are not available, other suitable officers may be appointed for the above purpose.

(2)

It shall be the general duty of the Election Officer at any election to do all such acts and things as may be necessary for conducting the elections, in the manner provided under the Act, Rules or Orders made thereunder for any Farmers Organisation.

(3)

The Election Officer appointed shall conduct the elections in the Farmers Organization with the assistance of the Assistant Election Officers and such other polling personnel appointed as per necessity by the District Election Authority.

Explanation. - (a) Whenever the ayacut of a Farmers Organization spreads over more than one district, the District Collector of such District in whose jurisdiction the major extent of ayacut lies shall be the District Election Authority for conducting elections, to such Farmers Organizations.

(b)

In case of any doubt or dispute, the decision of the Election Authority shall be final.

6.

Assistant Election Officers.

(1)

The District Election Authority may appoint one or more persons as Assistant Election Officers to assist the Election Officer, as may be necessary for conduct of elections:

Provided that every such person shall be an officer of the State Government or of a local authority.

(2)

Every Assistant Election officer shall, subject to the control of the Election Officer, be competent to perform all or any of the functions of the Election Officer:

Provided that no Assistant Election Officer shall perform any functions of the Election Officer, related to the scrutiny of nominations, unless the Election Officer is unavoidably prevented from performing the said functions.

7.

Polling Officers.

(1)

For Water Users Associations in Major and Medium Irrigation system.

(a)

the District Election Authority or any officer authorized by him shall ordinarily appoint a Polling Officer for every Territorial Constituency of a Water Users Association and such number of Polling Assistants as he thinks necessary, depending on the number of voters in a particular Territorial Constituency:

Provided that if a Polling Assistant is absent, the Polling Officer may appoint any person who is present at the' polling station other than a person who has been employed by or acting on behalf of the candidate, or has been otherwise working for a candidate in or for the election, to be the Polling Assistant and inform the Election Officer accordingly.

(b)

a Polling Assistant if appointed shall, if so directed by the Polling Officer, perform all or any of the functions of a Polling Officer under these Rules.

(c)

If a Polling Officer owing to illness or due to unavoidable circumstances abstains himself, from the Polling Station, his functions shall be performed by such Polling Assistant as previously authorized by the Election Officer to perform such functions during absence:

(d)

If shall be the general duty of the Polling Officer at the Polling Station to keep and maintain public order there at and to see that the poll is conducted in a fair and peaceful manner.

(2)

For Water Users Associations in Minor Irrigation System.

(a)

The prime responsibility of (i) calling for nomination, (ii) preparation of list of nominations, (iii) Scrutiny of nominations, (iv) withdrawal of candidatures (v) preparation of final list of candidates rests with Election Officer only.

(b)

However, as this entire process has to be completed simultaneously on the same day for all Territorial Constituencies, Polling Officers shall assist the Election officer to perform these functions in their Territorial Constituency on his behalf.

(c)

The final list of candidates shall be signed by the Election Officer, after satisfying himself of the nomination process as given above.

(d)

While the polling and counting process shall be organized by all Polling Officers, the announcement of results and issue of Election certificate shall be given by the Election Officer only.

(3)

For Distributory Committees and Project Committees.

The District Election Authority or any officer authorized by him may appoint one or more Polling Officers as may be necessary to assist the Election Officer for conducting elections in the Distributory Committees or the Project Committees.

8.

Remuneration to polling personnel.

- The District Election Authority or any officer authorized by him may pay the remuneration to the polling personnel for their services in connection with the elections in Farmers Organizations, as fixed by the Government.

9.

Polling Stations.

(1)

The District Election Authority or any officer authorized by him shall publish a list of Polling Stations for the Territorial Constituencies of Water Users Associations in Form - 23-A for Major and Medium Systems and in Form 24-A for Minor Irrigation Systems and call for objections if any. this lists shall be displayed on the notice board of the concerned Gram Panchayat, Mandal Parishad and Mandal Revenue Office:

(2)

After receiving the objections if any, the District Election Authority or any officer authorized by him shall consider all such objections within one day and finalize the lists of Polling Stations and publish in Form-23-B for Major & Medium System and in Form -24-B in respect of Minor Irrigation Systems. The lists so finalised shall be displayed on the notice boards of the concerned Gram Panchayat, Mandal Parishad and Mandal Revenue Office.

(3)

The venue identified for the purpose of election office for polling and counting shall easily accessible and located preferably in the centre of town or village, as far as possible:

(4)

The Polling Stations may be so arranged that all the voters covered under a Territorial Constituency be accommodated in one Polling Station.

10.

Power of Government to remove difficulty.

- If any question arises as to the interpretation of these Rules, otherwise than in connection with an enquiry held under the Rules, for the decision on disputes as to the validity of an election or in removing any difficulty in giving effect to the provisions of the Act and Rules, the question shall be referred to the Government, whose decision thereon shall be final.

Chapter II

Important issues in Election Process General

11.

Right to vote.

(1)

Every person whose name is entered in the votes list of a Territorial Constituency shall be entitled to vote in that particular Territorial Constituency:

(2)

No person shall vote in more than one Territorial Constituency of the same Water Users Association:

(3)

No person shall at any election, vote in the same Territorial Constituency more than once, notwithstanding that his name may have been registered in that voters list more than once, erroneously;

(4)

All voters voting at an election shall do so in person, at the polling Station provided for them under these Rules.

12.

Appointment of Election Agent.

(1)

This provision is applicable in the case of contesting candidates for the posts of the members of the Territorial Constituencies in Water Users Associations in Major and Medium Irrigation Systems only;

A candidate at an election to the post of member of the Territorial Constituency may appoint only one person to be his Election Agent:

(3)

The Election Agent appointed in sub-rule (2) shall perform all the functions of a Polling Agent and also that of a Counting Agent. He shall abide by the Rules of this manual and on any violation of discipline, his order of appointment shall be cancelled by the Polling Officer forthwith, without any notice to the contesting candidate;

(4)

The letter of appointment shall be submitted in Form-8 (single copy) to the Election Officer, who shall return the same to the Election Agent after affixing his signature therein, in token of his approval of the appointment:

(5)

The Election Agent shall obtain the election pass from the concerned Polling Officer of the Territorial Constituency, after submitting the approved letter of appointment:

(6)

Where any act or thing is required or authorized under these Rules to be done in the presence of the Election Agents, the non-attendance of any such agent or agents at the time and place appointed for the purpose shall not, if the act or thing is otherwise duly done, invalidate the act or thing done;

(7)

Either the contesting candidate or his Election Agent may be present in the poll process including polling, counting etc.

13.

Facilities to women voters.

(1)

Where a Polling Station is for both men and women voters, the Polling Officer may direct that they shall be admitted into the Polling Station alternately in separate batches:

(2)

In case, where there are more number of women voters at any particular Polling Station, the Polling Officer may appoint a women to serve as an attendant to assist women voters and also to assist Polling Officer generally in taking the poll in respect of women voters and in particular to help in searching any women voters, in case it becomes necessary;

(3)

Any other facilities may be provided to women voters as directed by the District Election Authority.

14.

Special meeting for electing the President and Vice-President of a Water Users Association.

(1)

All the elected members of Territorial Constituencies shall be present at the venue of election at the appointed time, as directed by the Election Officer, after the declaration of the results of Territorial Constituency members of the Water

Users Association, for electing the President and Vice-President;

(2)

For equitable distribution of waste within the Water Users Association, it is necessary to have the two important functionaries namely the President and Vice President elected from two different reaches of the Water Users Association. This will ensure that the farmers from Lower reaches have their representative in decision making role to safeguard their interests. To achieve the above objective, the following steps shall be taken.

(a)

The District Collector after delineating, the Territorial Constituencies based on hydraulic basis shall also demarcate half of them as the Territorial Constituencies in the Upper Reaches and the remaining half of them as the Territorial Constituencies of Lower reach, based on their proximity to the water source and notify them accordingly.

(b)

The Election Officer shall receive the nominations from the desirous candidates for the post of President from among the Territorial Constituency members elected for the Water Users Association. Any Territorial Constituency member may submit his nomination for the post of the President irrespective of his being from the Upper reach or the Lower reach.

(c)

The Election Officer shall conduct the elections and declare the candidate who secured the highest number of votes as the President.

(d)

The Election Officer shall invite nominations for the post of Vice-President from the Territorial Constituency members of Lower reaches, if the President is elected from the Upper reach and vice-versa so as to ensure that a Water Users Association shall have the President and Vice-president representing from two different reaches and conduct election and declare the results.

(3)

Even if some of the elected members of Territorial Constituencies are not present at the venue by the appointed time, the election to the posts of President and Vice-President shall be held with the members present, as per schedule;

(4)

If none of the members of Territorial Constituencies turns up at the appointed time or only one member of Territorial Constituency turns up, the Election Officer shall wait at the venue for 30 minutes and if there is no change in the situation, the Election Officer shall declare the posts of President and Vice-President as casual vacancies until the elections are held for these posts under Section 15 of the Act and record in Form - 15C and the same shall be submitted to District Election Authority. If the Territorial constituency posts filled by election are less than fifty percent of the total posts, the same procedure shall be followed.

(5)

Till such time necessary transitional arrangements shall be made or if such arrangements are already in existence, the same may be continued as per Section 34 of the Act;

(6)

If the members of Territorial Constituencies, though present in the special meeting, fail to elect either the President or the Vice-President or both within the scheduled time, the same procedure as mentioned under sub-rule (4) shall be followed.

15.

Special meeting for electing the President and Vice-President of a Distributory Committee.

(1)

No meeting for the conduct of election to the post of the President and Vice-President of a Distributory Committee shall be held, unless there be present at the meeting at least one-half of the total members of the Distributory Committee, who are entitled to vote at the election;

Explanation. - Where the strength of the members of the Managing Committee of the Distributory Committee is an odd number, for the purpose of reckoning the fifty percent strength, it shall be rounded off to the next higher number.

(2)

If the required quorum is not achieved for the first special meeting to elect the President and Vice-President of the Distributory Committee or if the members present failed to elect the President or Vice-President or both though the quorum is achieved, a second and final meeting shall be held after a clear gap of five days from the date of the first

meeting;

(3)

If the required quorum is not achieved even in the second and final meeting also or if the members present failed to elect the President or Vice-President or both though the quorum is achieved, the Election Officer shall declare the posts of President or Vice-President or both, as the case may be, as casual vacancies until the elections are held for these posts under Section 15 of the Act and record in Form- 15C, and the same shall be submitted to the District Election Authority;

(4)

Till such time, necessary transitional arrangements shall be made or if such arrangements are already in existence, the same may be continued as per Section 34 of the Act.

16.

Special meeting for electing the Chairman and Vice-Chairman of a Project Committee.

(1)

No meeting for the conduct of election to the post of the Chairman and Vice-Chairman of a Project Committee shall be held, unless there be present at the meeting at least one-half of the total members of a Project Committee, who are entitled to vote at the election.

Explanation. - Where the strength of the members of the Managing Committee of Project Committee is an odd number, for the purpose of reckoning the fifty percent strength, it shall be rounded off to the next higher number.

(2)

If the required quorum is not achieved for the first special meeting for the election of the Chairman and Vice-Chairman of the Project Committee or if the members present failed to elect the Chairman or Vice-Chairman or both, though the quorum is achieved, a second and final meeting shall be held after a clear gap of five days from the date of first meeting.

(3)

If the required quorum is not achieved even in the second and final meeting also or if the members present failed to elect the Chairman or Vice-Chairman or both, though the quorum is achieved, the Election Officer shall declare the posts of the Chairman or Vice-Chairman or both as casual vacancies until the elections are held for these posts under Section 15 of the Act and record in Form-15-C and the same shall be submitted to the District Election Authority;

(4)

Till such time, necessary transitional arrangements shall be made or if such arrangements are already in existence, the same may be continued as per Section 34 of the Act.

During Voting

17.

Identification of voters.

(1)

When a person presents himself to vote and at any time before a voting slip is supplied to him, the Polling Officer may put to such person the following questions: -

(a)

are you the person enrolled as follows? (reading the relevant entry from the voters, list in full)

(b)

have you already voted at the present election, at this polling station or at any other polling station?

(2)

The person shall not be supplied with a voting slip unless he gives an unqualified answer to the question or questions put to him or heir in affirmative to the first and in the negative to the second.

(3)

Except as mentioned herein, every person whose name is found on the voters list shall be entitled to be supplied with a voting slip.

18.

Safeguard against impersonation.

(1)

For an election to the members of Territorial Constituencies in Major and Medium Irrigation Systems.

(a)

Every voter about whose identity, the Polling Officer or the Polling Assistant, as the case may be, is satisfied shall allow his left forefinger to be inspected by the Polling Officer or Polling Assistant and an indelible ink mark to be put on it.

(b)

Any reference in this Rule to the left forefinger of a voter shall, in case where the voter has his left forefinger missing, be construed as a reference to any other finger of his left hand and shall, in case where all the fingers of his left hand are missing, be construed as a reference to the forefinger or any other finger of his right hand and shall in case where all his fingers of both the hands are missing, be construed as a reference in such extremity of his left or right arm as he possesses.

(c)

The Polling Officer or Polling Assistant shall then issue the voting slip to a voter duly folding it in such a manner so as to maintain secrecy of vote.

(d)

the Polling Officer shall not issue a voting to any person for voting at the polling station, if at the time such person applies for a voting slip has already an indelible ink mark referred to in sub-rule (l)(a).

(2)

For the elections to the members of the Territorial Constituencies in Minor Irrigation Systems, it shall not be necessary to put the indelible ink mark, as the election will be held in the Extraordinary General Body Meeting of the Water Users Association.

19.

Challenging of identity.

(1)

Any candidate or his Election Agent may challenge the identity of a person claiming to be a particular voter by first depositing a sum of rupees ten in cash with the Polling Officer for each such challenge.

(2)

On such a deposit being made, the Polling Officer shall:

(a)

Warn the person challenged of the penalty for impersonation;

(b)

read the relevant entry in the voters list in full and ask him, whether he is the person referred to in the entry7;

(c)

enter his name and address in the list of challenged votes in Form-11; and

(d)

request him to affix his signature in the said list.

(3)

The Polling Officer shall thereafter hold a summary enquiry into the challenge and may for that purpose;

(a)

request the challenger to adduce evidence in proof of the challenge and the person challenged to adduce evidence in proof of his identity;

(b)

put the person challenged any question necessary for the purpose of establishing his identity and request him to answer them on oath; and

(c)

administer an oath to the challenger and any other person offering to give evidence.

(4)

If after the enquiry, the Polling Officer considers that the challenge has not been established, he shall allow the person challenged to vote and if he considers that the challenge has been established, he shall debar the person challenged from voting and such person shall be handed over to the Police personnel on duty for further action.

(5)

If the Polling Officer is of the opinion that the challenge is frivolous or has not been made in good faith, he shall direct that the deposit made under sub-rule (1) be forfeited to the Government, otherwise he shall return it to the challenger at the conclusion of the enquiry and obtain acknowledgement in Form-11.

(6)

The decision of the Polling Officer in sub-rule (4) and sub-rule (5) shall be final.

20.

Cancelled voting slips.

(1)

If a voter, to whom a voting slip has been issued, refuses to observe the produce for voting, even after warning by the Polling Officer, the voting slip issued shall be taken back from him by the Polling Officer, whether he has recorded his vote thereon or not.

(2)

After the voting slip has been taken back, the Polling Officer shall record on its back the words "cancelled -voting procedure violated" and put his signature below these words and all such voting slips shall be kept separately bundled and properly accounted for.

(3)

Without prejudice to any other penalty as per law to which a voter from whom a voting slip has been taken back under sub-rule(1), may be liable to, the vote if any recorded on such voting slip, shall not be counted.

21.

Spoilt and returned voting slips.

(1)

A voter who has in advertently dealt with his voting slip may, by delivering it to the Polling Officer and on satisfying him of the inadvertence, be given another voting slip and the voting slip so returned and the counterfoil of such voting slip shall be marked as "Spoilt-cancelled" by the Polling Officer.

(2)

If a voter after obtaining a voting slip decides not to use it, he shall return it to the Polling Officer and the voting slip so returned and the counterfoil of such voting slip shall be marked as "Returned - Cancelled" by the Polling Officer.

(3)

All voting slips cancelled under sub-rule (1) and sub-rule (2) shall be kept separately bundled and properly accounted for, after affixing the signature of Polling Officer on such voting slips.

22.

Tendered votes.

(1)

If a person representing himself to be a particular voter, applies for a voting slip after another person has already voted as such voter, he shall, on satisfactorily answering such questions relating to his identity as the Polling Officer may ask, be entitled, subject to the following provision to mark voting slip (hereinafter in these, rules referred to as a "Tendered voting Slip") in the same manner as any other voter.

(2)

Every such person, shall, before being supplied with a tendered voting slip, sign his name against entry relating to him in Form-10.

(3)

A tendered voting slip shall be the same as the voting slip used at the polling, except that it shall be: -

(a)

taken serially from the bottom of the last bundle of voting slips issued for use at the Polling Station in successive cases; and

(b)

endorsed on its back with the words "Tendered voting slip" by the Polling Officer in his own hand writing and signed by him.

(4)

The voter, after marking a tendered voting slip in the voting compartment and folding it, shall instead of putting it into the voting box, give it to the Polling Officer, who shall keep it separately bundled and properly accounted for.

23.

Blind and infirm voters.

(1)

If owing to blindness or other physical infirmity, a voter is unable to recognize the symbols or names or numerals on the voting slip or to make mark thereon, the Polling Officer shall record the vote on the voting slip in accordance with the wishes of the voter, fold it so as to conceal the vote and insert it into the voting box.

(2)

While acting under this Rule the Polling Officer shall observe secrecy and shall keep a brief record of each such instances in the Polling Officer's dairy, but shall not indicate therein, the manner in which any vote has been given.

Counting of votes and declaration of results

24.

Counting of votes, in case of fresh poll.

(1)

If a fresh poll is held under the Rules, the Election Officer, shall after completion of that poll, recommences the counting of votes on the date, time and place which have been fixed by him in that behalf and for which notice has been previously given to the candidates or their Election Agents.

(2)

The procedure laid down for accounting of voting slips and sealing of used voting slips etc., shall be followed in this case also.

25.

Rejection of voting slips.

(1)

Subject to such general or special directions if any, as may be given by the Election Authority or the District Election Authority in this behalf, the voting slips shall be counted:

(2)

The Election Officer shall reject a voting slip

(a)

If it bears any mark or writing by which the voter can be identified: or

(b)

if it bears no mark at all to indicate the vote or it bears a mark made otherwise than with the instrument supplied for the purpose; or

(c)

if votes are given on it in favour of more than one candidate; or

(d)

if the mark indicating the vote thereon is placed in such a manner as to make it doubtful, as to which candidate the vote has been given; or

(e)

if it is a spurious voting slip; or

(f)

if it is so damaged or mutilated that its identity as a genuine voting slip cannot be established; or

(g)

if it does not bear the signature of Polling Officer as per rules.

Provided that, where the Election Officer is satisfied that any such defect as is mentioned in clause (g) has been caused by any mistake or failure on the part of a Polling officer or Polling Assistant, the voting slip shall not be rejected merely by the reason of such defect;

Provided further that, a voting slip shall not be rejected merely on the ground that the mark indicating the vote is indistinct or made more than once, if the intention that the vote shall be for a particular candidate clearly appears from the way the paper is marked.

(3)

Before rejecting any voting slip, the Election Officer shall allow the contesting candidates or Election Agents present, a reasonable opportunity to inspect the voting slip but shall not allow them to handle it or any other voting slip.

(4)

The Election Officer shall endorse on every voting slip, which he rejects the word "Rejected" and the grounds of rejection in abbreviated form either in his own hand or by means of a rubber stamp and shall sign such endorsement.

(5)

All voting slips rejected under this Rule shall be bundled together.

(6)

Every voting slip which is not rejected under this Rule shall be counted as one valid vote.

Provided that no cover containing tendered voting slips shall be opened and no such voting slip shall be counted.

(7)

After counting of all voting slips contained in all the voting boxes used in the election of Farmers Organization has been completed, the Election Officer shall make the entries in a result sheet in Form-13 and announce and record the particulars in Form-15-B.

(8)

The decision of the Election Officer as to the validity of a voting slip shall be final, subject to scrutiny only by an election petition.

26.

Recount of votes.

(1)

After such announcement has been made under sub-rule (7) of Rule 25, a candidate or in his absence, his Election Agent may apply in writing to the Election Officer for recounting of the votes either wholly or in part stating the grounds on which he demands such recount.

(2)

On such an application being made, the Election Officer shall decide the matter and may allow the application in whole or in part or if it appears to him to be frivolous or unreasonable, he may reject it wholly.

(3)

Every decision of the Election Officer under sub-rule (2) shall be in writing and contain the reasons therefor:

(4)

If the Election Officer decides under sub-rule (2) to allow a recount of the votes either wholly or in part he shall: -

(a)

arrange for the recounting in accordance with the Rules:

(b)

amend the result sheet in Form-13 to the extent necessary after such recount, attest; and

(c)

announce the amendments so made by him in Form-15-B.

(5)

After the total number of votes polled in favour of each candidate has been announced under sub-rule (4), the Election Officer shall complete and sign the result sheet in Form-13 and no application for a further or second recount shall be entertained thereafter.

27.

Sealing of used voting slips.

- The valid voting slips of each candidate and the rejected voting slips shall thereafter be bundled separately and the several bundles made up into a separate packet which, shall be sealed with the seals of the Election Officer and of such of the candidates, their Election Agents as may desire to affix their seals thereon, and the packets be sealed shall have following particulars superscribed.

(a)

Name of Farmers Organization

(b)

Village/Town

(c)

Mandal

(d)

Number of Territorial Constituency (for Territorial Constituency Elections)

(e)

Date of counting

28.

Result of an uncontested candidate.

(1)

If there is only one validly nominated candidate, the Election Officer shall forthwith declare such candidates as duly elected in Form-15-A.

(2)

The Original copy of the declaration (Form-15-A), duly filed in with all the details of the candidate, shall be sent to the Election Authority by the District Election Authority, within fifteen days after the date of election.

(3)

The Election Officer shall Issue certificate of election to the uncontested candidates in Form-16 and obtain the acknowledgement.

29.

Declaration of result for contested candidate.

(1)

If the number of contesting candidates is more than one, poll shall be conducted.

(2)

The Election Officer shall, subject to the provisions of the Rules, in so far as they apply to any particular case: -

(a)

declare the candidate who secured the largest number of valid votes, as elected in Form-15-A.

(b)

The results of election shall be entered in Form-15-B.

(c)

The original copy of Form-15-A, duly filled in with all the details of the candidate, shall be sent to the Election Authority by the District Election Authority, within fifteen days after the date of election.

30.

Equality of votes.

- If, after the counting of the votes is completed, an equality of votes is found to exist among any of the candidates and the addition of one vote will lead to any of those candidates being declared elected, the Election Officer shall forthwith decide among those candidates by lot, and proceed as if the candidates on whom the lot falls had received the additional vote.

31.

Publication of results.

- The Election Officer shall display on the notice board at the election office, a notice signed by him, indicating the names of the candidates duly elected in the Form-15-B for information to the general public.

32.

Issue of election certificate.

(1)

The Election Officer shall issue the election certificates to all those candidates who are elected as members of Territorial Constituencies, President and Vice-President of Water Users Association: President and Vice-President of Distributary Committee: Chairman and Vice-Chairman of the Project Committee, either un-contested or after a contest in Form-16 on the same day.

(2)

The Acknowledgement shall be obtained from the candidates.

33.

Depositing of duplicate copies.

- The filled in duplicate copies of election forms supplied, shall be deposited with the District Election Authority along with other records.

34.

Disposal of voting slips.

(1)

The Election Officer shall, after declaring the results, hand over to the officer authorized by the District Election

Authority, all the packets of voting slips, whether counted, rejected or tendered. These packets shall not be opened and their contents shall not be inspected or produced except under the orders of an authority competent to decide election disputes.

(2)

The Officer so authorized shall retain packets as given in sub-rule (1) and the marked copies of the voters list etc., for a year and shall then unless otherwise directed by the authority competent to decide election disputes, cause them to be destroyed, except the documents which shall be kept for six years, i.e., original copies of declaration of results in stitched volumes for all elections in Farmers Organization.

35.

Fixing the tenure of members of Territorial Constituencies.

(1)

The managing committees of Water Users Associations being continuous bodies, the following procedure shall be adopted for fixing the tenure of members of Territorial Constituencies. However, this exercise is limited to the first election only.

(a)

The members of the Territorial Constituencies elected for the first time will have different tenures i.e., 1/3rd of the members will have two years term, another 1/3rd members will have four years term and the remaining 1/3rd members will have six years term.

(b)

After the election of members of Territorial Constituencies, to decide their individual tenure, lots shall be drawn before the conduct of election to the post of President and Vice-President is taken up and shall be recorded in Form-14-A or Form-14-B, as the case may be.

(c)

All members of Territorial Constituencies elected in the ordinary elections held subsequently, shall have tenure of six years uniformly as per the provisions of the Act.

(2)

The following procedure shall be adopted to draw lots with regard to the fixing of tenure of the members of Territorial Constituencies elected in the first election.

(a)

For Major and Medium Irrigation Systems.

(i)

Twelve identical square chits of white paper of equal size shall be prepared. The Territorial Constituency numbers from 1 to 12 shall be written on the above chits. The chits shall be rolled along one side of the square chit so prepared. The rolled chits shall be kept in a single lot, here in after called the "Territorial Constituency lot".

(ii)

Four identical square chits of white paper of equal size on which the words "two years" shall be written on each and rolled as described above. In a similar procedure four chits with the words "four years" and four more chits with the words "six years" shall be prepared. All these twelve rolled chits shall be kept as another lot, here in after called "Tenure lot".

(iii)

To fix different tenures for the members of Territorial Constituencies, the Election Officer shall pick out one chit from the "Territorial Constituency lot" and shall also pick one chit from the "tenure lot" after thorough shuffling of chits in each lot.

(iv)

The Election Officer shall unroll the chits so picked from the two lots and shall announce aloud the number of the Territorial Constituency and corresponding tenure. The picked up chits, after announcement, shall be kept separately.

(v)

this information shall simultaneously be recorded in Form-14-A and the signatures of the candidates present may be obtained and in case the candidate/candidates concerned is not present or he refuses to sign, then the Election Officer shall write "Refund" in column No. 5 of Form-15A and authenticate such entry with his signature.

(vi)

The Election Officer shall follow the same procedure till the tenures of all the members of the Territorial Constituencies

are decided upon.

(b)

for Minor Irrigation Systems.

(i)

Six identical square chits of white paper of equal size shall be prepared. the Territorial Constituency numbers from 1 to 6 shall be written on the above chits. The chits shall be rolled along one side of the square chit so prepared. The rolled chits shall be kept in a single lot, here in after called the "Territorial Constituency lot".

(ii)

In the "tenure lot" there shall be two chits containing the words as "two years", another two chits containing the words as "four years" and the balance two chits containing the words as "six years".

(iii)

For deciding the tenure of the Territorial Constituency members, the Election Officer shall adopt the same procedure as described above, in the case of Major and Medium Irrigation Systems.

(iv)

This information shall be simultaneously recorded in Form-14-B and the signature of all the candidates present may be obtained and in case the candidate/ candidates concerned is not present or refuses to sign, then the Election Officer shall write "refused" in column No. 5 of Form-14-B and authenticate such entry with his signature.

Note. - (1) the chits prepared for drawing lots shall be truly identical in all respects to maintain secrecy and principle of natural justice and in no case no one shall be able to identify any particular chit with a particular Territorial Constituency number.

(2)

The fixing of tenures of the Territorial constituency members shall be taken up in the presence of members available in the special Managing Committee meeting before the election of President and Vice President.

(3)

Tenures shall be fixed for all the Territorial Constituencies in a Water Users Association even though the posts of Territorial Constituencies are not filled up after elections.

(4)

This whole exercise is limited to the first batch of elected members after the introduction of the concept of Water Users Associations, being continuous bodies.

36.

Restriction against holding more than one post in WUAs.

- If any person gets elected as the member of Territorial Constituency from more than one Territorial Constituency from different Water Users Association areas, he can hold only one Territorial Constituency post of his choice, resigning the other posts.

Chapter III

Adjournment of Polls

37.

Special election Programme.

- Notwithstanding anything contained in these Rules, where the election process is interrupted or the election programme has to be altered on account of the orders of any Court of Law or for other valid reasons to be recorded in writing, it shall be competent for the District Election Authority either generally or in respect of a specified Farmers Organization, to alter the election programme as he deems fit in the circumstances of the case and the Election Officer shall give effect to the same.

Provided that where the election programme is re-notified under this Rule commencing from the activity of filing of nominations, the nominations already received need not be disregarded.

38.

Power of Election Officer to fix dates etc., in certain Cases.

- Notwithstanding anything contained in these Rules, the Government or the Election Authority may, before filing of nominations in the case of any Farmers Organization in particular, empower the Election Officer to fix dates and period other than those specified or fixed by or under these Rules, for all or any of the stages of the election proceedings connected therewith.

39.

Death of candidate before normal poll.

- If a contesting candidate dies and a report of his death is received before commencement of the poll, the Election Officer shall after being confirmed of the fact of the death of the candidate, countermand the poll and the election proceedings shall be started afresh in all respects, as if it is a new election.

Provided that no fresh nomination shall be necessary, in the case of a candidate who stood validly nominated at the time of countermanding of the poll.

40.

Adjournment of poll in emergencies.

(1)

Where, (a) the proceedings at any Polling Station are seriously interrupted or obstructed by any riot or open violence or otherwise or (b) where a large number of voters are unable to attend the poll at a Polling Station by reason of an act of God, such as flood or fire etc., the Election Officer shall stop the poll at that Polling Station, pending receipt of the orders of the District Election Authority, The fact that the poll has been SO stopped shall be Immediately announced by the Election Officer to the persons present at the Polling Station.

(2)

Where the Election Officer stops a poll under sub-rule (1), he shall observe the procedure given in this manual for closing of poll and sealing of voting boxes, covers, accounting of voting slips etc., and forthwith make a full report of the circumstances to the District Election Authority.

(3)

The District Election Authority shall thereupon order:

(a)

that the poll be continued at the Polling Station for the number of hours for which it was not held on the previous occasion provided that not less than fifty percent of the voters have cast their votes: or

(b)

that the proceedings at the poll held at the Polling Station on the previous occasion be ignored and that a fresh poll be held at such polling station for the full number of hours for which it should have been held on the previous occasion; and

(c)

Any order passed by the District Election Authority under this sub-rule shall be final.

(4)

Any order passed under sub-rule (3) shall:

(a)

state: -

(i)

the date on which, the hours between which the continuation poll or the fresh poll, as the case may be shall be held; and

(ii)

the date on which and the place and hour at which, the Election Officer shall commence the counting of the votes.

(b)

Indicate for wide publicity in the polling area concerned by the Election Officer in such a manner as the District Election Authority may direct announcing the date, place and hour of polling fixed under clause (a).

41.

Continuation poll after adjournment.

(1)

Where an order is passed under clause (a) of sub-rule (3) under Rule 40 for the continuation of the poll, the District Election Authority shall proceed afresh and appoint Election Officer and other polling personnel necessary and return to the Election Officer so appointed, all the packets received by him at the time of adjournment of poll.

(2)

The Election Officer shall provide the Polling Officers of the Polling Station at which such continuation poll is held with the sealed packet containing the marked copy of the voters list, voting boxes and such other material required for the poll.

(3)

The Polling Officers shall open the packets just before commencement of the continuation poll in the presence of such persons as may be present at the Polling Station, and commence such poll precisely at the hour fixed therefor in the order passed by the District Election Authority under clause (a) of sub-rule (3) under Rule 40.

(4)

At the continuation poll, the Polling Officers shall allow only such voters to vote, who did not vote in the previous occasion.

(5)

The Election Officer shall not count votes cast at such election until such continuation poll or fresh poll has been completed.

42.

Fresh poll after adjournment.

- Where an order is passed under clause (b) of sub-rule (3) under Rule 40 for holding a fresh poll, the District Election Authority shall proceed afresh and appoint Election Officer and polling personnel necessary and a fresh poll shall be held at the Polling Station concerned in accordance with the provisions of these Rules in all respects as if, it is being held at such Polling Station for the first time and there shall be no fresh nominations in this case.

43.

death of a candidate in adjourned poll.

- Notwithstanding anything contained in Rule 40, if a candidate dies at any time before orders are passed by the District Election Authority under sub-rule (3) of Rule 40 or at any time after the passing of such orders but before commencement of the continuation poll, or of the fresh poll, as the case may be, the Election Officer shall upon being satisfied of the fact of the death of the candidate, intimate such fact to the District election Authority, stop all further proceedings in connection with the election and start election proceedings afresh in all respects, as if for a new election. Provided that no fresh nomination shall be necessary in the case of the remaining candidates who stood nominated at the time when the poll was stopped.

44.

Disturbances at the time of counting of votes.

(1)

If at any time before the counting of votes is completed and voting slips used at a Polling Station or at a place fixed for the poll are unlawfully taken out of the custody of the Election Officer or the voting slips are accidentally or intentionally destroyed or lost or damaged or tampered with, to such an extent that the result of the poll at that Polling Station or place can not be ascertained, the Election Officer shall forthwith report the matter to the District Election Authority.

(2)

Thereupon, the District Election Authority after taking all material circumstances into account either: -

(a)

direct that the counting of votes shall be stopped, declare the poll at that polling station or place to be void, appoint a day, and fix the hours for taking a fresh poll at that polling station or place and notify the date so appointed and hours so fixed in such manner as he may deem fit; or

(b)

if satisfied that the result of a fresh polling station or place will not, in any way, affect the result of the election, issue such directions to the Election Office as may deem proper for the resumption and completion of the counting.

(3)

the provisions of these Rules and any Rules or Orders made there under shall apply to any and every such fresh poll as they apply to the original poll.

Chapter IV

Election to the Water Users Associations in Minor Irrigation Systems

Election to the Territorial Constituency Members

45.

Holding of Elections.

(1)

An ordinary election shall be held in one day for the purpose of constituting Water Users Associations in Minor Irrigation Systems, after the commencement of the Act and on the expiration of the term of the members of the Territorial

Constituencies, President and Vice-President of Water Users Association or on vacation of such office or offices either by death, resignation, recall or any other reason.

(2)

In exceptional cases, if in the opinion of District Election Authority, conducting of election on a single day in any of the Water Users Associations of Minor Irrigation Systems is considered to be administratively difficult, owing to reasons like number of villages under the jurisdiction of the Water Users Association is more than three of the number of voters being large say 500, the District Election Authority shall list out such Water Users Associations and after obtaining the permission of the Election Authority may conduct elections in such Water Users Associations following the procedure adopted under Major and Medium Irrigation Systems, with duration of two days.

Important Note. - The rules contained in Chapter-2 shall form part and parcel of this Chapter to the extent they are relevant.

46.

Public notice of intended election.

- (1) Public notice by Election Authority. - The Election Authority shall, subject to such directions as may be issued by the Government in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications publish in Form-IB, in the Andhra Pradesh Gazette, call upon, on such date or dates as may be specified therein, to elect the members of the Territorial Constituencies, President and Vice-President of the Water Users Associations, in Minor Irrigation System in accordance with the provisions of the Act, Rules and Orders made thereunder.

(2)

Public notice by District Election Authority:

(a)

the District Election Authority shall, subject to such directions as may be issued by the Election Authority, in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications, publish in Form-2B in the District Gazette, call upon on such date or dates as may be specified therein, to elect the members of the Territorial Constituencies, President and Vice-President of the Water Users Associations in accordance with the provisions of the Act, Rules and Orders made thereunder.

(b)

the notification or notifications mentioned in sub-rule 2(a) shall specify the phases of elections, the corresponding date or dates of elections and the list of names of Water Users Associations covered in those phases.

(3)

Public notice by Election Officer,

(a)

On the issue of the notification in sub-rule (2). the Election Officer shall issue public notice of the intended elections for the Water Users Association, in Form-3B in Telugu language, which shall be displayed at prominent places in the water users area and in a manner as the District Election Authority may direct.

(b)

the public notice in sub-rule (3) (a) shall specify the date, time and venue for convening extraordinary General Body Meeting of the Water users Association, time for receipt of nominations, scrutiny of nominations, withdrawal of candidature and the time during which poll shall be taken up for electing the members of the Territorial Constituencies. It shall also specify the timings for election of the President and Vice-President of Water Users Association.

(c)

the Election Officer shall also arrange for "tom-tom" of the schedule of elections in the village or villages concerned, one day before the polling date.

(b)

Public notice for casual vacancies: - For filling the casual vacancies in Water User Association of Minor Irrigation Systems, the same procedure as detailed under Rule 46 shall be adopted.

47.

Election schedule.

(1)

the following shall be the one day election schedule for conducting the elections to the members of the Territorial

Constituencies, President and Vice-president of Water Users Associations in Minor Irrigation Systems.

Item

Timings

(a)

Starting time for convening of Extraordinary

General Body Meeting for elections and issue of nomination

forms.

9.00 AM

(b)

Cut-off time for allowing voters into the hall

or pandal and guiding them to sit Territorial Constituency- wise

10.00 AM

(c)

Receipt of nominations from contesting

candidates for the posts of members of Territorial

Constituencies

10.00 -10-30 AM

(d)

Scrutiny of nominations, withdrawal of

candidature and declaration of final list of contestants

(Territorial Constituency -wise)

10.30- 11.00 AM

(e)

Election to members of Territorial

Constituencies and declaration of results(Territorial

Constituency-wise)

11.00 AM onwards till completion of election

(f)

Special Managing Committee Meeting

2.30 -300 P.M.

(i)

Fixing up of tenures (Rule 35)

(ii)

Election to the posts of President and

Vice-President and declaration of results.

3. P.M. onwards till completion of elections on

the same day.

Note. - In exigencies, it shall be competent for the Election Officer to change the timings after item (c), provided that the entire poll process is completed on the same day.

(2)

All the voters of concerned Water Users Association shall assemble at the notified place on a notified date and time as specified in public notice issued by the Election Officer.

(3)

Members of the Territorial Constituencies of Water Users Associations shall be elected by the eligible voters of the respective Territorial Constituencies, in an Extraordinary General Body meeting convened by the Election Officer, as per schedule in sub-rule(l).

(4)

The President and Vice-President of Water Users Associations shall be elected by the Territorial Constituency members, in a special meeting convened immediately for the purpose, by the Election Officer, as per schedule in sub-rule(l).

(5)

The Election Officer shall select suitable premises for all the voters to sit during the process of elections. The Election Officer may arrange to erect temporary structure or structures (like shamiana) for the purpose, if necessary.

(6)

The voters shall be requested to sit Territorial Constituency-wise in the same hall or in separate rooms or places in the same premises as per directions of Election Officer.

(7)

The Polling Officer appointed for a Territorial Constituency shall ascertain the identity of voters of that Territorial Constituency with the list of voters. Non-voters identified by the members in the meeting and persons other than those permitted by the Election Officer for the purpose of conducting elections, shall not be allowed into the premises meant for the election.

48.

Nomination of candidates.

(1)

At the appointed time, the Polling Officer shall inform the voters assembled, the Intention of the meeting and the procedure to be followed for electing the Territorial Constituent Members.

(2)

There shall not be any restrictions of quorum for the meeting convened for the purpose of the election.

(3)

Every eligible voter present in the meeting has a right to nominate himself as a candidate for the post of member of the Territorial Constituency.

(4)

The Polling Officer shall then invite nominations from the candidates desirous of contesting for the post of member of Territorial Constituency (Territorial Constituency-wise)

(5)

The contesting candidate shall pay a non-refundable nomination fee as prescribed in Rule 126 and obtain the nomination form in Form-4 from the Election Officer.

(6)

The filled in nomination form signed by the candidate shall be handed over to the Polling Officer and receipt obtained in Form-5. Each contesting candidate shall be proposed by one voter from that Territorial Constituency. The contesting candidate shall sign the declaration in the nomination form.

(7)

A candidate to the post of member of Territorial constituency of a Water Users Association and his proposer shall be the persons whose names are registered in the current voters list of that Territorial Constituency.

(8)

In a Territorial Constituency of a Water Users Association, where the membership is only one, the sole member is deemed to have been elected as a member of that Territorial Constituency.

49.

List of nomination received.

- The Polling Officer shall prepare the list of contestants in Form-6 and read out the names and other particulars of the nominations received aloud (Territorial Constituency-wise).

50.

Scrutiny of nominations.

- The Polling Officer shall verify the particulars of nominations with the voters lists and satisfy himself of the eligibility of the voter to contest. Nominations of ineligible candidates shall be rejected and the names of such nominee shall be announced accordingly in the meeting by the Polling Officer and recorded in Form-6.

51.

Withdrawal of candidature.

(1)

Candidates desiring to withdraw their candidature may do so within the stipulated time, after recording their decision in the relevant column of the nomination form duly attested by the Polling Officer on behalf of the Election Officer and the same shall be announced in the meeting as and when received.

(2)

A candidate who has once withdrawn his candidature under sub-rule (1) shall not be allowed to cancel his withdrawal, under any circumstances.

52.

Final list of candidates.

- At the end of the appointed time, the Polling Officer shall announce name or names of the candidates, left in the fray for the post of member of Territorial constituency (Territorial Constituency-wise) and record it in Form-7 and shall be signed by the Election Officer after satisfying himself of the nomination process as above.

Note. - If list of candidates exceed 9, the election to that Territorial Constituency shall be countermanded, fresh election shall be conducted separately.

53.

Result of un-contested candidate.

(1)

If there is only one validly nominated candidate, the Election Officer shall declare him as having been elected for the post of member of Territorial Constituency in Form-15-A and issue the election certificate in Form-16.

(2)

If the number of candidates left in the fray is more than one, polls shall be held immediately.

54.

Voting Procedure.

(1)

The polling Officer before commencement of poll shall inform the voters the names of the contesting candidates and their serial numbers.

(2)

The election of Territorial Constituency members may be either through raising of hands or through voting slips. The Polling Officer shall ascertain the opinion of the voters present, in respect of their choice of electing their Territorial Constituency member either by show of hands or through voting slips. The Polling Officer shall follow one of the above two methods, as agreed upon by the majority of the voters present.

(3)

If the voters choice is for conducting election by raising of hands, the Polling Officer shall take the signature of the voters in Form-9C before actual process of conducting election. The Polling Officer shall count number of voters in favour of each contesting candidate and record in Form-13. The Election Officer shall declare the candidate who secured highest votes as elected for that Territorial constituency.

(4)

If the voters, choice is for election through raising of hands, there shall not be any necessity for voting Box. If their choice of election is through voting slips, voting box has to be used and the symbols shall be allotted to the contesting candidates.

(5)

Voting box includes any box, bag or other receptacle used for the insertion of voting slips by voters as directed by the District Election Authority. Immediately before commencement of the poll, the Polling Officer shall demonstrate to the contesting candidate and other persons present that the voting box is empty.

(6)

The District Election Authority shall procure the voting slips in sufficient numbers to cover the voters in the Water Users Associations (Territorial Constituency -wise) and some extra voting slips for any contingency, as per the model voting slip issued by the Election Authority.

(7)

Every voting slip shall be in Form 9-A with a counterfoil attached thereto and the said voting slip and the counterfoil shall be in such form as the Election Authority may prescribe.

(8)

every voting slip, before issued to a voter, be written on its back such of the details as may be specified by the Election Authority thus:

(a)

Name of Water Users Association.

(b)

Number of Territorial Constituency.

(c)

Signature of the Polling Officer.

(9)

Immediately before any voting slip is issued to a voter, the Polling Officer shall:

(a)

call out the number, name and description of the voter as stated in the voters list, and

(b)

record on its counterfoil the number of the voter as entered in the marked copy of the voters list and obtain the signature or thumb impression of that voter on the said counterfoil.

Provided that no voting slip shall be delivered to a voter unless he has put his signature or thumb impression on the counterfoil of that voting slip.

(10)

The Polling Officer shall underline the entry relating to the voter in the marked copy of the voters list in every case and where the voter is a woman shall put a (4) mark also on the left hand side of the name of the woman voter.

(11)

No person in the Polling Station shall note down the serial numbers of the voting slips issued to any voter.

(12)

The voters in a Territorial Constituency shall put a Tick (4) mark on the symbol of the candidate of their choice with a pen and drop it in the voting box kept before the Polling Officer. In case of inform, old aged and blind voters, the Polling Officer is authorized to assist such voters in marking on the voting slip as per the choice of the voter.

55.

Counting of votes.

(1)

When the election is by raising of hands:

(a)

if the Election is by raising of hands, the Polling Officer shall count or cause to count the number of voters in favour of each contesting candidate. To avoid confusion in counting of raised hands, the Polling Officer may adopt the procedure of segregation. The Polling Officer shall announce the name of the first candidate as per the final list of contesting candidates. The voters who desire to vote for him shall raise their right hands and after being counted, they shall leave the hall.

(b)

The second name in the list shall be announced by the Polling Officer to know the voters choice for this candidate. The voters who desire to vote for the candidate shall raise their right hands and after being counted by the Polling Officer, they shall leave the hall.

(c)

This process shall be continued to know the choice of remaining voters in respect of the remaining candidates.

(d)

As and when the counting is done, it shall immediately be entered in Form-13 against the name of the corresponding candidate.

(e)

The signature of the candidate shall be obtained against his name, and in case the candidate concerned is not present or he refuses to sign, then the Polling Officer shall authenticate such entry with his signature.

(2)

When the Election is by voting slips:

(a)

If the Election is through voting slips, the Election Officer, after all the voters present in a Territorial Constituency exercised their right to vote will count or cause to count the number of votes polled to each of the contesting candidates in a Territorial Constituency and record the same in Form-13.

(b)

the Polling Officer shall fill all the items of voting slip account in Form-12 carefully and issue a copy of it to the candidate on request and obtain the acknowledgement in the duplicate copy.

56.

Declaration of results.

(1)

The candidate who secured the highest number of votes shall be declared elected as the member of that Territorial constituency in Form-15-A.

(2)

Once the counting of votes and declaration of successful candidates in all the Territorial Constituencies is completed, the Election Officer shall record the list of candidates elected in Form-15-B (Territorial Constituency-wise) and exhibit it on notice board at the Election Office.

57.

Issue of election certificate.

- After declaration of successful candidates in each Territorial Constituency either un-contested or after a contest, election certificate shall be issued by the Election Officer to each of such elected candidate in Form-16 on the same day and the acknowledgement obtained.

Election of President

58.

Special Managing Committee meeting.

(1)

Fix up tenures for all the Territorial Constituencies as detailed in Rule 35, before taking up the elections of the President and Vice-President and record the tenures in Form-14-B and obtain their signatures. In case the candidate concerned is not present or he refuses to sign then the Election Officer shall authenticate such entry with his signature duly writing a remark "absent/refused" in column (5) of Form-14-B.

(2)

A special meeting of the elected members of the Territorial Constituencies of Water Users Association shall be held by the Election Officer to elect the President and Vice-President.

(3)

Convening of the special meeting shall be as per the provisions of Rule 14.

(4)

Election shall be conducted for the post of President and Vice-President, in case fifty percent of total Territorial Constituency posts are filled up.

59.

Election schedule.

(1)

The Election for the post of President and Vice-President shall be held as per the following schedule.

Item

Timings

(a)

Receipt of nomination and announcement of nominations received

10 Minutes

(b)

Withdrawal of candidature

10 Minutes

(c)

Final list of valid nominations

10 Minutes

(d)

Polling, if necessary

15 Minutes

(e)

Counting of votes and declaration of results

15 Minutes

(2)

In exigencies it shall be competent to the Election Officer to marginally change the timings provided as in sub-rule (1) but the entire poll process shall be completed on the same day.

(3)

Where the elections are to be held simultaneously for both the posts of President and Vice-President, the election process for the post of Vice-President shall commence only after the election to the President is completed and result declared.

60.

Nomination of candidates.

(1)

All the Territorial Constituency members elected are eligible for contesting for the post of President or Vice-President of a Water Users Association.

(2)

A candidate desirous of contesting for the post of President shall pay the non-refundable nomination fee as prescribed in Rule 126; obtain nomination form (Form-4) from the Election Officer.

(3)

The filled in nomination form shall be filed with the Election Officer.

(4)

On receiving each nomination form the Election Officer shall forthwith number the nomination form serially, in the order of the receipt and acknowledge the same in Form-5.

61.

List of nominations received.

- The list of candidates who have filed their nominations for the post of President shall be announced by the Election Officer to all the voters present in the meeting and record the same in Form-6.

62.

Scrutiny of nominations.

- The Election Officer shall scrutinize the nomination form received and decide the eligibility or otherwise of the candidate and record the same in the nomination form.

63.

Withdrawal of candidature.

(1)

The Election Officer thereafter shall allow a maximum time of 10 minutes to the contesting candidate for withdrawal if any. The candidates who wish to withdraw their candidature shall record their decision by signing in the relevant column of the nomination form duly attested by the Election Officer.

(2)

The Election Officer shall then record the withdrawal of the candidature in Form-6 simultaneously.

(3)

A candidate once withdrawn his candidature under sub-rule (1) shall not be allowed to cancel his withdrawal, under any circumstances.

64.

Final list of contesting candidates.

- The Election Officer shall record the names of the candidates left in the contest after withdrawal if any, in Telugu language in alphabetical order in Form-7 and announce the same in the meeting.

65.

Result of un-contested candidate.

(1)

if there is only one validly nominated candidate left, the Election Officer shall forthwith declare him as having been

elected for the post of President in Form-15-A and issue the election certificate in Form-16.

(2)

If the number of candidates left in the fray is more than one, the poll shall be held.

66.

Voting Procedure.

(1)

The Election Officer before commencement of poll shall inform the members of the Territorial Constituencies present, the names of the contesting candidates, as per Form-7.

(2)

The election of President of Water Users Association may be either through raising of hands or through voting slips. The Election officer shall ascertain the opinion of the voters present in respect their choice of electing the President whether by show of hands or through voting slips. The Election Officer shall follow one of the above two methods as agreed upon by the majority of the voters present.

(3)

if the choice of the voters in election is by raising of hands, the Election Officer shall take the signature of the Territorial Constituency members in Form-9-C. The Election Officer shall count number of votes in favour of each contesting candidate, recording Form 13 and declare the candidate who secured highest votes as elected as President of the Water Users Association.

(4)

If the choice of the voters for election is through voting slips, the Election Officer shall arrange to distribute voting slips in Form-9-B to all the members of Territorial Constituencies present one after the other, after obtaining their signature or thumb impression in Form-9-D.

(5)

In the event of contest, voting slips shall be prepared containing the names of the contesting candidates in Telugu language in alphabetical order for the post of President in Form-9-B.

(6)

The voting box as specified by the District Election Authority shall be placed on the table of the Election Officer, in full view of the contesting candidates and the Election Officer shall demonstrate to the contesting candidates and the members present that the voting box is empty before commencement of the poll.

(7)

To maintain the secrecy of voting, the Election Officer shall shuffle the voting slips before issue. The voting slips shall be issued at random.

(8)

The printed serial number of the voting slip issued to a voter shall not be mentioned in Form-9-D or noted any where.

(9)

On the reverse of every voting slip before issuing to a voter, the following shall be affixed:

(a)

Name of Water Users Association.

(b)

Number of Territorial Constituency.

(c)

Full signature of the Election Officer.

(10)

The members of the territorial Constituency shall put a Tick (4) mark in the box on the voting slip against the name of the candidate of their choice, with a pen and drop it in the voting box kept before the Election Officer, one after another.

(11)

The Poll shall be closed by the Election Officer after all the Members of the Territorial Constituencies present cast their votes.

67.

Counting of votes.

- After the poll is closed, the Election Officer shall count or cause to count the number of votes polled to each of the

contesting candidates and record the same in Form-13.

68.

declaration of results and issue of election certificate.

(1)

The candidate who secured the highest number of votes shall be declared elected for the post of President of the Water Users Association by the Election Officer and record in Form-15-A.

(2)

The Election Officer shall issue the election certificate to the successful candidate in Form-16 immediately on the same day and obtain acknowledgement.

Election of Vice-President

69.

Election Procedure.

(1)

A candidate desirous of contesting for the post of Vice-President shall pay the non-refundable nomination fee as prescribed in Rule 126 and obtain the nomination form in Form-4 from the Election Officer.

(2)

For the election of Vice-President, the procedure detailed in the election of the President, shall be followed in the same sequence and schedule in this chapter subject to sub-rule (2) of Rule No. 14 to ensure proper representation to both Upper and Lower reaches in the posts of President and Vice-President and also subject to the condition that the Territorial Constituency member elected as President of the Water Users Association shall not be eligible to contest for the post of Vice-President.

Chapter V

Elections to Water Users Associations in Major and Medium Irrigation Systems Election to the Territorial Constituencies Members

70.

Holding of Elections.

- An ordinary election shall be held for the purpose of constituting Water Users Associations in Major and Medium Irrigation Systems after the commencement of the Act and on the expiration of the term of the members of Territorial Constituencies, President and Vice-President of Water Users Associations or on vacation of such office or offices either by death, resignation, recall or any other reason.

Important Note. - The rules contained in Chapter-2 shall form part and parcel of this Chapter to the extent they are relevant.

71.

Public notice of intended election.

(1)

Public notice by Election Authority:

The Election Authority shall, subject to such directions as may be issued by the Government in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications publish in Form-1 A, in the Andhra Pradesh Gazette, call upon, on such date or dates as may be specified therein, to elect the Members of the Territorial constituencies, Presidents and Vice-Presidents of the Water Users Associations in Major and Medium irrigation Systems, in accordance with the provisions of the Act, Rules and Orders made there under.

(2)

Public notice by District Election Authority:

(a)

The District Election Authority shall, subject to such directions as may be issued by the Election Authority, in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications publish in Form-2 A in the District Gazette, call upon on such date or dates as may be specified therein, to elect the members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations in accordance with the provisions of the Act. and the Rules and Orders made there under.

(b)

The notification or notifications mentioned in sub-rule 2(a) shall specify the phases of elections, corresponding date or

dates of elections and the list of names of Water users Associations covered in those phases.

(3)

Public notice by Election Officer:

(a)

On the issue of the notification in sub-rule (2), the Election Officer shall issue a public notice of the intended election for Water Users Association in Form-3A in Telugu language, which shall be displayed at the election office and at the prominent places in the water user area and in such manner as the District Election Authority may direct.

(b)

The public notice in sub-rule 3(a) shall specify the date and timings for receiving nominations, scrutiny of nominations, withdrawal of candidature, finalization of list of contesting candidates and allotment of symbols, venue for election, the date and time during which poll shall be held and counting of votes for the election to the members of the Territorial Constituencies, It shall also specify the timings for elections to the posts of President and Vice-President of Water Users Association.

(c)

The Election Officer shall also arrange for "Tom Tom" of the schedule of elections in the village or villages concerned one day before the receipt of nomination forms and also on the day of receipt of nomination forms and also on the day of receipt of nomination forms.

(4)

Public notice for casual vacancies. - For filling the casual vacancies in Water Users Association of Major and Medium Irrigation Systems, the same procedure as detailed above shall be adopted.

72.

Election Schedule.

- The following shall be the election schedule for conducting elections to the members of the Territorial Constituencies, President and Vice-President of Water Users Association in Major and Medium Irrigation Systems.

First Day (Nominations)

Item

Timings

(a)

Receipt of nominations from the contesting candidates for Territorial Constituencies.

9.00 - 12.00 Noon

(b)

Scrutiny of nominations and publication of valid nominations.

12.00 Noon - 2.00 PM

(c)

Withdrawal of candidature

2.00 -4.00 PM

(d)

Finalization of list of contestants and allotment of the election symbols.

from 4.00 PM onwards till completion (on the same day)

Second Day (Polling and Results)

Item

Timings

(e)

Polling to elect the members of Territorial Constituencies

7.00 AM - 1.00 PM

(f)

Counting of votes and declaration of results.

2.00 -4.00 PM

(g)

Special Managing Committee Meeting

(i) Fixing up of Tenures (Rule 35)

4.00 -4.30 PM

(ii) Election to the posts of President and

Vice-President and declaration of results.

4.30 PM on wards till completion of elections

on the same day. Second Day (Polling and Results)

Note. - In exigencies, it shall be competent for the Election Officer to alter the timings after item (c) above, provided that the entire poll process of electing President and Vice-President shall be completed on the same day.

73.

Nomination of candidates.

(1)

Any person may be nominated as a candidate to fill the post of member of Territorial Constituency of Water Users Association, if he is qualified to be chosen to fill the post, under the provisions of the Act.

(2)

A candidate desirous of contesting as a member of Territorial Constituency of Water Users Association, shall pay a non-refundable nomination fee as prescribed in Rule 126 and obtain the nomination form from the Election Officer.

(3)

Every Nomination form shall be in Form-4 and shall be presented to the Election Officer, at the appointed date and time, by the candidate himself or by his proposer with all the relevant particulars filled in. The contesting candidate shall sign the declaration in the nomination form.

(4)

A candidate to the post of member of Territorial Constituency of a Water Users Association and his proposer shall be the persons, whose names are registered in the current voters list of that Territorial Constituency.

(5)

in a Territorial Constituency, where the membership is only one, the sole member is deemed to have been elected as a member of that Territorial Constituency.

(6)

On receiving the nomination form, the Election Officer shall forthwith number the nomination form serially in the order in which it is presented to him and give a receipt as provided in Form-5 as a token of receiving nomination form.

(7)

The Election Officer shall satisfy himself that the name and number of the candidate and his proposer, as entered in the nomination form are the same as in the voters list.

(8)

The Election Officer may while Interpreting an entry in the voters list, overlook the clerical or printing errors only, but he shall record the interpretation adopted by him, together with the reasons therefor, while making the formal acceptance or rejection on scrutiny of a nomination.

74.

List of nominations received.

- Immediately after expiry of the time specified for receipt of the nomination forms, the Election Officer shall publish at the election office, a list of all the nominations received in Form-6 in Telugu language (Territorial Constituency-wise).

75.

Scrutiny of nominations.

(1)

On the date, time and place appointed for scrutiny of the nominations, the candidate or his proposer may be presented at n.e time of the scrutiny.

(2)

The Election Officer may, admit such other persons as he thinks fit to assist him for scrutiny of nominations.

(3)

The Election Officer shall examine the nomination forms and shall decide on objections which may be made by candidate or his proposer in respect of any nominations at the time of scrutiny and may either on such objection or on his own motion after summary enquiry as he thinks necessary, reject any nomination on any of the following grounds, namely: -

(a)

that the candidate is ineligible for election as a member of Territorial Constituency of Water Users Association under Section 14 of the Act: or

(b)

that the name of the candidate (or) of his proposer (or) both is (or) are not registered in the current voters list; or

(c)

that the candidate has not paid the prescribed nomination fee as per Rule 126; as entered in his nomination form or

(d)

that the signature or thumb impression of the candidate or his proposer in the nomination form is not genuine;

Provided that the nomination of a candidate shall not be rejected merely on the ground of an incorrect description of his name or of the name of his proposer, or of any other particulars relating to the candidate or his proposer as entered in the voters list, if the identity of the candidate or proposer, as the case may be, is otherwise established before the Election Officer beyond reasonable doubt.

(4)

The Election Officer shall endorse on each nomination form his decision of accepting or rejecting the same, if the nomination form is rejected, he shall record in writing, a brief statement of his reasons for such rejection in Form-4.

(5)

The scrutiny shall, as far as practicable, be completed within the time appointed in this behalf and no adjournment of the proceedings shall ordinarily be permissible except to provide an opportunity to a candidate to rebut any contention raised against his candidature.

(6)

For the purpose of this Rule, a certified copy of an entry in the voters list in force shall be conclusive evidence of the fact that the person referred to in that entry is a voter in that Territorial Constituency, unless it is proved that he is subject to any disqualification mentioned in the Act.

(7)

Immediately after all the nomination forms have been scrutinized and the decision of accepting or rejecting the same has been recorded in nomination form in Form-4 the Election Officer shall record the same in the relevant column against each name in Form-6, affixed already on the notice board at the election office.

76.

withdrawal of candidature.

(1)

Candidates desirous of withdrawing their candidature, may do so after recording their decision in the relevant column of nomination form duly attested by the Election Officer and the same should be recorded in Form-6 by the Election Officer.

(2)

A candidate who has withdrawn his candidature under sub-rule (1) shall not be allowed to cancel his withdrawal, under any circumstances.

77.

Final list of contesting candidates.

(1)

After the scrutiny of nominations, the Election Officer shall prepare a final list of candidates whose nominations have not been rejected and who have not withdrawn their candidature and display it in Telugu language in alphabetical order in Form-7 on the notice board at the election office, Territorial Constituency-wise.

(2)

the final list shall contain the names of the candidates as described in their nomination forms and if the poll is found to be necessary, it shall also specify the name of the distinctive symbols allotted to them, in the order of approved list of symbols.

(3)

In every case, where a symbol is assigned to a candidate under sub-rule (2) such candidate or his proposer shall forthwith be informed of the symbol so assigned and be supplied with a printed specimen thereof by the Election Officer.

78.

Result of uncontested candidate.

(1)

If there is only one validly nominated candidate left, the Election Officer shall forthwith declare him as having been elected for the post of member of Territorial Constituency in Form-15-A and issue the election certificate in Form-16.

(2)

If the number of candidates left in the fray is more than one, the poll shall be held.

79.

Arrangements of Polling Stations.

(1)

As far as possible, all the Polling Stations of a Water Users Association shall be located in a single premises, convenient to voters of all the Territorial Constituencies so that counting of votes can be taken up immediately after the close of poll, under the direct supervision of the Election Officer.

(2)

In cases where the above arrangement is not feasible, the Election Officer shall make adequate arrangements for the safe transport of all voting boxes, and other polling material and for their safe custody until commencement of the counting of votes at a common place fixed.

(3)

There shall be a minimum of one polling station for every Territorial Constituency and in no case the voters of different Territorial constituencies vote in the same Polling Station.

(4)

There shall be as many voting boxes as may be necessary for the Polling Stations to cover all the Territorial Constituencies in a Water Users Association and the total number of voting boxes shall be decided by District Election Authority depending on the number of voters.

(5)

outside each polling station, there shall be displayed prominently

(a)

a notice specifying the polling area, the serial number of voters in relevant voters list who are entitled to vote at the Polling Station and when the polling area has more than one Polling Station, the particulars of the voters so entitled:

(b)

copy of the list of contesting candidates with the serial numbers, names and the symbols assigned to them: and

(6)

each of the Polling Station shall contain one or more separate compartments in which voters are to record their votes, in secrecy (Territorial Constituency wise)

(7)

The Election Officer shall arrange to provide at each Polling Station, the copies of the voters list or such part thereof, so as to contain the names of the voters entitled to vote at the station, and such other papers, and articles necessary for voters to mark the voting slips, stationery and forms as may be necessary.

80.

Voting box.

(1)

"Voting box" includes any box, bag or other receptacle used for the insertion of voting slip by voters, as directed by the District Election Authority.

(2)

Immediately before commencement of the poll, the Polling Officer shall demonstrate to the contesting candidates or their Election Agents and others present, that the voting box is empty.

(3)

The voting box shall then be closed, and secured and placed in full view of the Polling Officer, contesting candidates or

Election Agents.

Explanation. - The specification of voting boxes, size, shape and material to be used shall however be decided by the District Election Authority to ensure secrecy in voting.

(4)

Immediately before commencement of the poll, the Polling Officer shall demonstrate to the election Agents and others present the marked copy or copies of the voters list as the case may be, to be used during the poll.

81.

Voting slips.

(1)

The District Election Authority shall procure the voting slips in sufficient numbers to cover the voters in the Water Users Associations (Territorial Constituency-wise) and some extra voting slips for any contingency, as per the model voting slip issued by the Election Authority.

(2)

Every voting slip shall be in Form-9A with a counterfoil attached thereto and the said voting slip and the counterfoil shall be in such form as the Election Authority may prescribe.

(3)

Every voting slip, before issued to a voter, be written on its back such of the details as may be specified by the Election Authority thus:

(a)

Name of Water Users Association.

(b)

Number of Territorial Constituency

(c)

Signature of the Polling Officer.

82.

Issue of voting Slips.

(1)

Immediately before any voting slip is issued to a voter, the Polling Officer shall:

(a)

call out the number, name and description of the voter as stated in the voters list, and

(b)

record on its counterfoil the number of the voter as entered in the marked copy of the voters list and obtain the signature or thumb impression of that voter on the said counterfoil.

Provided that no voting slip shall be delivered to a voter unless he has put his signature or thumb impression on the counterfoil of that voting slip.

(2)

The Polling Officer or Polling Assistant, as the case maybe, shall underline the entry relating to the voter in the marked copy of the voters list in every case and where the voter is a woman shall put a(4) mark also on the left hand side of the name of the woman voter.

(3)

The Polling Officer or Polling Assistant, as the case may be, shall apply the indelible ink mark as detailed in Rule 18 before issuing a voting slip.

(4)

No person in the Polling Station shall note down the serial numbers of the voting slips issued to any voter.

83.

Voting Procedure.

(1)

Every voter to whom a voting slip has been issued shall maintain secrecy of voting within the Polling Station and for that purpose observe the following voting procedure.

(2)

The voter on receiving the voting slip shall forthwith:

- (a)
proceed to one of the voting compartments;
 - (b)
mark on the voting slip with the instrument supplied for the purpose on or near the symbol allotted to the candidate for whom he intends to vote;
 - (c)
fold the voting slip vertically first and thereafter horizontally, so as to conceal his vote.
 - (d)
insert the folded voting slip into the specified voting box; and
 - (e)
leave the Polling Station by the exit provided.
 - (3)
Every voter shall vote without undue delay.
 - (4)
No voter shall be allowed to enter a voting compartment, when another voter is already inside the compartment.
84.
Closing of poll.
- (1)
The Polling Officer shall close the Polling Station at the hour appointed for closing and shall not thereafter admit any voter into the Polling Station.
Provided that all voters present at the Polling Station before it is closed shall be allowed to cast their votes.
 - (2)
If any question arises whether a voter was present at the Polling Station before it was closed, decision of the Polling Officer shall be final.
 - (3)
The Polling Officer of each Polling Station as soon as practicable after the end of the poll, shall close the slit of the voting box with a slip, affix his signature and allow any Election Agent or Agents present to affix his or their signatures on the same slip. The voting box shall thereafter be kept secured.
 - (4)
Where it becomes necessary to use a second voting box by reason of the first voting box filled, the first box shall be closed, and secured as provided in sub-rule (3) before another voting box is put into use.
 - (5)
The Polling Officer shall fill in all the items of the voting slip account in Form-12 carefully and issue a copy of it duly signed, to the candidate or his Election Agent on request and obtain his acknowledgement on the duplicate copy.
 - (6)
At the end of the poll, the Polling Officer of each Polling Station, shall in the presence of candidates or Election Agent who may be present make up the following into separate packets or bundles for keeping in a cloth lined cover, supplied- packet No.1.
- (a)
United voting slips;
 - (b)
Spoiled and returned voting slips;
 - (c)
Counterfoils of used voting slips;
 - (d)
Voting slips cancelled for violation of voting procedure;
 - (e)
Market copy of the voters list;
 - (f)
Tendered voting slips;
 - (g)

Voting slip account or accounts;

(h)

Used voting slips in bundles.

(7)

A detailed statement of the contents as mentioned in sub-rule (5) shall be prepared and signed by the Polling Officer and also by the contesting candidates or Election Agents, willing to affix their signature and shall be kept in the packet sealed.

Note.. - Where there are no transactions, in a particular item in sub-rule (5), "NIL" may be written against the item.

(8)

The Polling Office shall prepare and bundle the following items in cloth lined covers supplied - Packet No. 2 and Packet No. 3.

Packet No. 2

(a)

Spare copy of voters list of the Territorial Constituency.

(b)

Hand book of "Instructions to Polling Office"

(c)

Appointment letters of the Election Agent

(d)

List of \$\$\$\$ and infirm voters.

(e)

Polling Officers diary

(f)

Receipt book for deposit of challenge fee.

(g)

Polling Officers Booklet containing other forms and annexures used in elections duly filled in, as directed by the Election Authority.

Packet No. 3. - Stationery and other materials as directed by the Election Authority.

85.

Counting of Votes.

(1)

The Counting of votes shall commence on the same day and at the place and hour appointed in this behalf, by the Election Officer within the area of Water Users Association.

(2)

In exigencies, if the Election Officer finds it necessary, he may alter the date, time and place or places so fixed, or any of them, after giving notice of the same in writing to each candidate or his Election Agent.

(3)

Votes shall be counted by or under the supervision of the Election Officer. The Election Officer shall appoint the same Polling Officers and in addition, any other polling personnel as may be necessary for counting to assist him in counting of votes. Provided that the same Polling Officer shall not count the voting slips of a Territorial Constituency for which he acted as a Polling Officer.

(4)

Either the candidate or his Election Agent (only one at a time) shall have a right to be present at the place of counting.

(5)

No person who has been employed by or on behalf of any candidate or any person whatsoever connected with the election of a candidate shall be appointed to assist in counting of the votes.

(6)

The Election Officer shall open, or cause to open, simultaneously the voting box or boxes belonging to same Territorial Constituency and shall have the total number of voting slips found in such voting box or boxes counted and recorded in Form-12 box-wise.

(7)

Discrepancy if any. between the total number of voting slips actually found in the voting box and the voting slips that are to be found as per item number of Form-12 shall be recorded and signed in Form-13.

(8)

Before any voting box is opened for counting of votes, the Election Agents present there shall be allowed to inspect the voting box and satisfy themselves that it is intact.

(9)

The Election Officer shall satisfy himself that none of the voting boxes has in fact been tampered with, in any way.

(10)

If the Election Officer has concluded that any voting box has in fact been tampered with, he shall not count the voting slips contained in that box and shall follow the procedure laid down in Rule 44 in respect of that Polling Station.

(11)

The Election Officer shall, proceed continuously with the counting of votes, and shall, during any necessary intervals during which the counting has to be suspended, place voting slips, packets and other documents relating to the election under his own seal and seals of such candidates or Election Agents as may desire to affix them and shall cause adequate precautions to be taken for their safe custody.

86.

Declaration of results.

(1)

The candidate who polled the highest number of votes shall be declared elected as member of Territorial Constituency after recording the results of counting in Form-13.

(2)

Once the counting of votes and declaration of successful candidates in all the Territorial Constituencies is completed the Election Officer shall record the list of candidates elected in Form-15B and exhibit it on the notice board at the election office. (Territorial Constituency-wise)

87.

Issue of election certificate.

- After declaration of successful candidates in each Territorial Constituency either un contested or after a contest, election certificate shall be issued by the Election Officer to each of such elected candidate in Form-16 on the same day and the acknowledgement obtained.

Election of President

88.

Special managing committee meeting.

(1)

If up tenures for all the Territorial Constituencies as detailed in Rule 35, before taking up the elections of the President and Vice-President and record the tenures in Form-14-A.

(2)

A special meeting of the members of the Territorial Constituencies of Water Users Associations shall be held by the Election Officer to elect the President and Vice-President.

(3)

Convening of the special meeting shall be as per the provision of Rule 14.

(4)

Election shall be conducted for the post of President and Vice-President, in case fifty percent of total Territorial Constituency posts are filling up.

89.

Election schedule.

(1)

The election for the post of President and Vice-President shall be held as per the following schedule.

Item

Timings

(a)

Receipt of nomination and announcement of

nominations received

10 Minutes

(b)

Withdrawal of nominations

10 Minutes

(c)

Final list of valid nominations

10 Minutes

(d)

Polling, if necessary

15 Minutes

(e)

Counting of votes and declaration of results

15 Minutes

(2)

In exigencies, it shall be competent to the Election Officer to marginally change the timings provided as in sub-rule (1) but the entire poll process shall be completed on the same day.

(3)

Where the elections are to be held simultaneously for both the posts of President and Vice-President, the election process for the Post of Vice-President shall commence only after the election to the President is completed and result declared.

90.

Nomination of Candidates.

(1)

All the Territorial Constituency members elected are eligible for contesting for the post of the President or Vice-President of a Water Users Association.

(2)

A candidate desirous of contesting for the post of President shall pay the non-refundable nomination fee as prescribed in Rule 126 obtain the nomination form (Form-4) from the Election Officer.

(3)

The filled in nomination form shall be filed with the Election Officer.

(4)

On receipt of nomination form, the Election Officer shall forthwith number the nomination form serially in the order of their presentation and give a receipt in Form-5 as a token of receiving the nomination form.

91.

List of nominations received.

- The list of candidates who have filed their nominations for the post of President shall be announced by the Election Officer to all the members present in the meeting and record the same in Form-6.

92.

Scrutiny of nominations.

- The Election Officer shall subject the nomination forms to scrutiny to decide the eligibility or otherwise of the candidate and record the same in the nomination form.

93.

withdrawal of candidature.

(1)

The Election Officer thereafter shall allow a maximum time of ten minutes to the contesting candidates for withdrawal if any.

The candidates who wish to withdraw their candidature shall record their decision by signing in the relevant column of the nomination form duly attested by the Election Officer.

(2)

The Election Officer shall then record withdrawal of the candidate in Form-6.

(3)

A candidate who has withdrawn his candidature under sub-rule (1) shall not be allowed to cancel his withdrawal under any circumstances.

94.

Final list of contesting candidates.

- The Election Officer shall record the names of the candidates left in the contest after withdrawals if any, in Telugu language in alphabetical order in Form-7 and announce the same in the meeting.

95.

Result of un-contested candidates.

(1)

If there is only one validly nominated candidate left, the Election Officer shall forthwith declare him as having been elected for the post of President in Form-15-A and issue the election certificate in Form-15-A and issue the election certificate in Form-16.

(2)

If the number of candidates left in the fray is more than one, poll shall be held immediately.

96.

Voting procedure.

(1)

The Election Officer before commencement of poll, shall inform the members of the Territorial Constituencies present, the names of the contesting candidates as per Form-7.

(2)

The election of President of a Water Users Association may be either through raising of hands or through voting slips. The Election Officer shall ascertain the opinion of the voters present in respect of their choice of electing the President whether by raising of hands or through voting slips. The Election Officer shall follow one of the above two methods as agreed upon by the majority of the votes present.

(3)

If the choice of the voters is election by raising of hands, the Election Officer shall take the signature of the Territorial Constituency members in Form 9-C. the Election Officer shall count number of hands raised in favour of each contesting candidate, record in Form-13 and declare the candidate who secured the highest votes as elected as President of the Water Users Association.

(4)

If the choice of the voters for election is thorough voting slips, the Election Officer shall arrange to issue voting slips in Form 9-B to all the members of Territorial Constituencies present one after the other after obtaining their signature or thumb impression in Form-9D.

(5)

On the reverse of every voting slip before issuing to a voter, the following shall be affixed;

(a)

Name of Water Users Association;

(b)

Number of Territorial Constituency.

(c)

Full signature of the Election Officer.

(6)

To maintain the secrecy of voting, the Election Officer shall shuffle the voting slips before issue.

(7)

The printed serial number of the voting slip issued to a voter shall not be mentioned in Form-9D or noted any where.

(8)

The Territorial Constituency members shall put a Tick (4) mark in the box in the voting slips against the serial number of the candidate of their choice, with a pen and drop it in the voting box kept before the Election Officer.

(9)

The Poll shall be closed by the Election Officer after all the members of the Territorial Constituencies present cast their

votes.

97.

Counting of votes.

- After the closure of Poll, the Election Officer shall count the number of votes polled to each of the contesting candidates and record the same in Form-13.

98.

Declaration of results.

(1)

The Candidate who secured the highest number of votes shall be declared elected for the post of President of the Water Users Association by the Election Officer in Form-15-A.

(2)

The Election Officer shall issue an election certificate to the successful candidate in Form-16 immediately on the same day and obtain the acknowledgement.

Election of Vice-President

99.

Election Procedure.

(1)

A candidate desirous of contesting for the post of Vice-President shall pay the non-refundable nomination fee as prescribed in Rule 126 and obtain the nomination Form-4.

(2)

For the election of Vice-President, the Procedure detailed in the election of the President, shall be followed in the same sequence and schedule in this chapter subject to sub-rule (2), of Rule No. 14 to ensure proper representation to both upper and low reaches in the posts of President and Vice-President and also subject to the condition that the Territorial Constituency member elected as President of the Water Users Association shall not be eligible to contest for the post of Vice-President.

Chapter VI

Elections to the Distributory Committees General

100.

Holding of elections.

(1)

Elections shall be held in a special meeting for the purpose of constituting Distributory Committees and on expiration of the term of the Distributory Committees or on vacation of such office or offices either by death, resignation, recall or for any other reasons.

(2)

the quorum for the meeting shall be as per Rule 15.

Important Note. - The rules contained in Chapter 2 shall form part and parcel of this Chapter to the extent they are relevant.

101.

Notification of intended election.

(1)

The Election Authority shall, subject to such directions as may be issued by the Government in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications publish in Form-1C. in the Andhra Pradesh Gazette, call upon, on such date or dates as may be specified therein, to elect the President and Vice-President of Distributory Committees in Major Irrigation System in accordance with the provisions of the Act, Rules and Orders made thereunder.

(2)

The District Election Authority shall, subject to such directions as may be issued by the Election Authority in pursuance of and in consonance with provisions of Act in this behalf, by notification or notifications publish in Form-2C in the District Gazette call upon on such date or dates as may be specified therein to elect the President and Vice-President of the Distributory Committees in Major Irrigation Systems in accordance with the provisions of the Act, Rules and Orders made thereunder.

(3)

The notification or notifications mentioned in sub-rule (2) shall specify the phases of elections, the corresponding date or dates of elections and the list of names of Distributory Committees covered in those phases.

(4)

Subject to such directions as may be issued by the District Election Authority in pursuance of and in consonance with the provisions of the Act, the Election Officer shall publish a public notice in Form-3C for the election of the President and Vice-President of the Distributory Committee and shall display it in Telugu language at the election office.

(5)

The public notice shall be sent by the Election Officer to all the members of Managing Committee of Distributory Committee (i.e.) to all Presidents of Water Users Associations after the jurisdiction of the Distributory Committee, by registered post, five clear days in advance of the date of election.

(6)

The public notice shall specify the place, date of special meeting and time schedule for filing nominations, scrutiny of nominations, withdrawal of candidature, counting etc.

(7)

For filing the casual vacancies in the Distributory Committees of Major Irrigation Systems, the procedure as detailed above shall be adopted.

102.

Election Schedule.

(1)

The following shall be the time schedule for conducting election to the post of President of Distributory Committee. The election shall be held in a specially convened meeting and shall conclude on a single day.

Item

Timings

(a)

Receipt of nominations for the post of
President

9.00 - 9.30 AM

(b)

Scrutiny of nominations and publication of
list of contesting candidates

9.30 - 9.45 AM

(c)

Withdrawal of candidature

9.45 - 9.55 AM

(d)

Publication of final list of candidates

10.00 AM

(e)

Election in the event of contest

10.00 - 10.30 AM

(f)

Counting and declaration of results

immediately after poll

(2)

Election to the post of Vice-President shall be taken up immediately after the completion of election to the post of the President. The candidate elected as President shall not be eligible to contest for the post of Vice-President. The following is the time schedule for election to the post of Vice-President of the Distributory Committee.

Items

Timings

(a)

Receipt of nominations for the post of
Vice-President

11.00 -11.30 A.M.

(b)

Scrutiny of nominations and publication of list
of contesting candidates

11.30 -11.45 A.M.

(c)

Withdrawal of Candidature

11.45 -11.55 A.M.

(d)

Publication of final list of candidates

12.00 A.M.

(e)

Election in the event of contest

12.00 - 12.30 A.M.

(f)

Counting and Declaration of results.
immediately after poll

(3)

In exigencies, it shall be competent to the Election Officer to change the time schedule mentioned in sub-rule (1) and sub-rule (2), marginally provided that the entire poll process for the election to the post of President and Vice-President shall be completed on the same day.

103.

Nominations of candidates.

(1)

A candidate desirous of contesting for the post of President or Vice-President of the Distributory Committee shall pay the non-refundable nomination fee as prescribed in Rule 126 to obtain nomination form. (Form 4).

(2)

Any member of the Managing Committee of the Distributory Committee may file his nomination for the post of President or Vice-President, proposed by one member of the Managing Committee of the Distributory Committee.

(3)

On receipt of nomination form, the Election Officer shall forthwith number the nomination form serially, in the order in which it is received and give a receipt in Form 5.

104.

List of nominations received.

- The list of candidates who have filed their nominations for the post of President or Vice-President shall be announced by the Election Officer to all the members present in the meeting and record the same in Form 6.

105.

Scrutiny of nominations.

(1)

The Election Officer for satisfying himself of the eligibility of the candidate shall verify the original election certificate of the candidate as President of the Water User Association, under the Distributory Committee.

(2)

The Election Officer shall scrutinize the nomination forms and decide the eligibility or otherwise of the candidate and record the same on the nomination form taking the objections raised by the other contestants if any into account and also record in Form 6.

106.

Withdrawal of candidature.

(1)

The Election Officer thereafter shall allow a time of ten minutes to the contesting candidates for withdrawal if any, who

- shall record their decision by signing in the relevant column of the nomination form, duly attested by the Election Officer.
- (2)
The Election Officer shall record the withdrawal of the candidature in Form 6.
107.
Final list of contesting candidates.
- The Election Officer shall record all the names of the candidates left in the contest after withdrawal, in alphabetical order in Telugu language in Form 7 and announce the same in the meeting.
108.
Result of un-contested candidate.
(1)
If there is only one validly nominated candidate left, the Election Officer shall forthwith declare him as having been elected for the post of President or Vice-President, as the case may be, of the Distributory Committee in Form 15A and issue the election certificate in Form 16.
(2)
If the number of candidates left in the fray is more than one, the poll shall be held immediately.
- Election of President
109.
Voting procedure.
(1)
Election to the post of President of the Distributory Committee shall be held in a meeting specially convened for the purpose, by the Election Officer, on the date, time and venue notified.
(2)
The Election Officer before commencement of the poll shall inform the members of Managing Committee of the Distributory Committee present, the names of the contesting candidates.
(3)
The election of President of the Distributory Committee may be either through raising of hands or through voting slips. The Election Officer shall ascertain the opinion of the voters present in the meeting in respect of their choice of electing their President, either by raising of hands or through voting slips. The Election Officer shall follow one of the above methods, as agreed upon by the majority of the voters present.
(4)
If the choice of the voters for the election is by raising of hands, the Election Officer shall take the signatures of the Water Users Association Presidents in Form 9C. The Election Officer shall count the number of voters in favour of each contesting candidate, record in Form 13 and declare the candidate securing the highest number of voters as elected to the post of President of Distributory Committee.
(5)
In the event of contest, voting slips shall be prepared containing the names of the contesting candidates in Telugu Language in alphabetical order for the post of President in Form 9B.
(6)
The voting box as specified by the District Election Authority shall be placed on the table of the Election Officer, in full view of the contesting candidates and the Election Officer shall demonstrate to the contesting candidates and the members present that the voting box is empty before commencement of the poll.
(7)
The voting slip shall be issued to every eligible voter present after obtaining his signature or thumb impression in Form 9D.
(8)
To maintain the secrecy of voting, the Election Officer shall shuffle the voting slips before issue. The voting slips shall be issued at random.
(9)
The serial number of the voting slip issued to a voter shall not be mentioned in Form 9D or noted anywhere.
(10)
On the reverse of every voting slip before issuing to a voter, the following shall be affixed:

(a)

Name of Distributory Committee

(b)

Full signature of the Election Officer.

(11)

After receiving the voting slip, each voter shall mark his choice of President on the voting slip in secrecy and fold it as indicated and drop it in the voting box placed before the Election Officer.

(12)

The Election Officer shall close the poll immediately after all the voters present in the special meeting have cast their votes within the appointed time.

110.

Counting of votes.

- At the end of the poll, the Election Officer shall arrange, the counting of votes forthwith and shall record the results in Form 13.

111.

Declaration of results.

(1)

The candidate who secured the highest number of votes shall be declared elected for the post of President of Distributory Committee, by the Election Officer and record the same in Form 15 A.

(2)

The Election Officer shall issue an election certificate to the successful candidate in Form 16 on the same day and obtain the acknowledgement.

(3)

The Election Officer shall send signed copies of Form 15A, to the District Election Authority and Election Authority.

(4)

The Election Officer shall also display Form 15A on the notice board, at his office.

Election of Vice-President

112.

Election procedure.

(1)

The candidate desirous of contesting for the post of Vice-President of the Distributory Committee shall pay a non-refundable nomination fee as prescribed in Rule 126 and obtain the nomination form (Form 4).

(2)

For the election of the Vice-President of the Distributory Committee, the procedure detailed in this chapter for the election of the President shall be followed in the same sequence, subject to the condition that the candidate elected as President of the Distributory Committee shall not be eligible to contest for the post of the Vice-President of Distributory Committee.

Chapter VII

Elections to the Project Committees General

113.

Holding of elections.

(1)

Elections shall be held in a special meeting for the purpose of constituting Project Committees and on expiration of the term of Project Committees or on vacation of such office or offices either by death, resignation, recall or for any other reasons.

(2)

The quorum for the meeting shall be as per Rule 16.

Important Note. - The rules contained in Chapter 2 shall form part and parcel of this Chapter to the extent they are relevant.

114.

Notification of intended election.

(1)

The Election Authority shall, subject to such directions as may be issued by the Government in pursuance of and in consonance with the provisions of the Act in this behalf, by notification or notifications publish in Form 1C, in the Andhra Pradesh Gazette, call upon, on such date or dates as may be specified therein, to elect the Chairman and Vice-Chairman of Project Committees in Major and Medium Irrigation Systems in accordance with the provisions of the Act, Rules and Orders made thereunder.

(2)

The District Election Authority shall subject to such directions as may be issued by the Election Authority, in pursuance of and in consonance with provisions of Act, in this behalf by notification or notifications publish in Form 2C in the District Gazette, call upon on such date or dates as may be specified there in, to elect the Chairman and Vice-Chairman of the Project Committees in Major and Medium Irrigation systems in accordance with the provisions of the Act, Rules and Orders, made thereunder.

(3)

The notification or notifications mentioned in sub-rule (2) shall specify the phases of elections, the corresponding date or dates of elections and the list of names of Project Committees covered in those phases.

(4)

Subject to such directions as may be issued by the District Election Authority in pursuance of and in consonance with the provisions of the Act, the Election Officer shall publish a public notice in Form 3C for the election of the Chairman and Vice-Chairman of the Project Committee and shall display it in Telugu language at the election office.

(5)

The public notice shall be sent by the Election Officer to all the members of Managing Committee of the Project Committee (i.e.) Presidents of Distributory Committees in case of Major Irrigation system and Presidents of Water Users Association in case of Medium Irrigation System, by registered post, with five clear days in advance of the date of election.

(6)

The public notice shall specify the place, date of special meeting and time schedule for filing nominations, scrutiny of nominations, withdrawal of candidature, polling, counting etc.

(7)

For filling the casual vacancies in the Project Committees of Major and Medium Irrigation Systems the procedure as detailed above shall be adopted.

115.

Election schedule.

(1)

The following shall be the time schedule for conducting elections to the post of Chairman of Project Committee. The election shall be held in a specially convened meeting and shall conclude on a single day.

Item

Timings

(a)

Receipt of nominations for the post of
Chairman

9.00 - 9.30 AM

(b)

Scrutiny of nominations and Publication of
list of contesting Candidates

9.30 - 9.45 AM

(c)

Withdrawal of candidature

9.45 - 9.55 AM

(d)

Publication of final list of candidates

10.00 AM

(e)

Election in the event of contest

10.00 - 10.30 AM

(f)

Counting and declaration of results

immediately after poll

(2)

Election to the post of Vice-Chairman shall be taken up immediately after the completion of election to the post of the Chairman. The candidate elected as Chairman shall not be eligible to contest for the post of Vice-Chairman. The following shall be the time schedule for election to the post of the Vice-Chairman of Project Committee.

Item

Timings

(a)

Receipt of nominations for the post of Vice-Chairman

11.00 -11.30 A.M.

(b)

Scrutiny of nominations and publication of list of
contesting candidates

11.30 -11.45 A.M.

(c)

Withdrawal of candidature

11.45 -11.55 A.M.

(d)

Publication of final list of candidates

12.00 A.M.

(e)

Election in the event of contest

12.00 Noon - 12.30 A.M.

(f)

Counting and declaration of results.

immediately after poll

(3)

In exigencies, it shall be competent to the Election Officer to change the time schedule mentioned in sub-rule (1) and sub-rule (2), marginally provided that the entire poll process for the election to the post of Chairman and Vice-Chairman shall be completed on the same day.

116.

Nomination of candidates.

(1)

A candidate desirous of contesting for the post of Chairman of the Project Committee shall pay a non refundable nomination fee as prescribed in Rule 126, to obtain nomination form (Form 4).

(2)

Any member of the Managing Committee of Project Committee may file his nomination for the post of Chairman or Vice-Chairman proposed by one member of Managing Committee of the Project Committee.

(3)

On receipt of nomination forms, the Election Officer shall forthwith number the nomination forms serially in the order in which it is received and give a receipt in Form 5.

117.

List of nominations received.

- The list of candidates who have filed their nominations for the post of Chairman or

Vice-Chairman shall be announced to all the members present in the meeting and record the same in Form 6.

118.

Scrutiny of nominations.

(1)

The Election Officer for satisfying himself of the eligibility of the candidate shall verify the original election certificate of the candidate issued by the Election Officer certifying his election as President of Distributory. Committee (in case of Major Irrigation system) or President of Water Users Association, (in case of Medium Irrigation System) under the jurisdiction of Project Committee.

(2)

The Election Officer shall subject the nomination forms to scrutiny to decide the eligibility or other wise of the candidate and record the same on the nomination form, taking the objections raised by the other contestants if any, into account, and also record in Form 6.

119.

Withdrawal of candidature.

(1)

The Election Officer there after allow a time of ten minutes to the contesting candidates for withdrawal if any, who shall record their decision by signing in the relevant column of the nomination form, duly attested by the Election Officer.

(2)

The Election Officer shall record the withdrawal of the candidature in Form 6.

120.

Final list of contesting candidates.

- The Election Officer shall record all the names of the candidates left in the contest after withdrawal, in alphabetical order in Telugu language in Form 7 and announce the same in the meeting.

121.

Result of un-contested candidates.

(1)

If there is only one validly nominated candidate left, the Election Officer shall forth with declare him as having been elected for the post of Chairman or Vice-Chairman. as the case may be, of Project Committee in Form 15A and issue election certificate in Form 16.

(2)

If the number of candidates left in the fray is more than one, the poll shall be held immediately.

Election of Chairman

122.

Voting procedure.

(1)

The election to the post of Chairman of the Project Committee shall be held in a meeting specially convened for the purpose, by the Election Officer on the date, time and venue notified.

(2)

The Election Officer before commencement of the poll, shall inform the members of Managing Committee of the Project Committee present, the names of the contesting candidates.

(3)

The election of Chairman of the Project Committee may be either through raising of hands or through voting slips. The Election Officer shall ascertain the opinion of the voters present in the meeting in respect of their choice of electing their Chairman, either by raising of hands or through voting slips. The Election Officer shall follow one of the above methods as agreed upon by the majority of the voters present.

(4)

If the choice of the voters for the election is raising of hands, the Election Officer shall take the signature of the Water Users Association Presidents/ Distributory Committee Presidents in Form 9C. The Election Officer shall count the number of voters in favour of each contesting candidate, record in Form 13 and declare the candidate securing the highest number of votes as elected to the post of Chairman of the Project Committee.

(5)

In the event of the contest, voting slips shall be prepared containing names of the contesting candidates in Telugu language in alphabetical order for the post of the Chairman in Form 9B.

(6)

The voting box as specified by the District Election Authority shall be placed on the table of the Election Officer, in full view of the contesting candidates and the Election Officer shall demonstrate to the contesting candidates and the members present that the voting box is empty before commencement of the poll.

(7)

Voting slip shall be issued to every eligible voter present after obtaining his signature or thumb impression in Form 9-D.

(8)

To maintain the secrecy of voting, the Election Officer shall shuffle the voting slips before issue.

(9)

The voting slips shall be issued at random.

(10)

The serial number of the voting slip issued to a voter shall not be mentioned in Form 9D or noted anywhere.

(11)

On the reverse of every voting slip before issuing to a voter, the following shall be affixed:

(a)

Name of Project Committee.

(b)

Full signature of the Election Officer.

(12)

After receiving the voting slips, each voter shall mark his choice of Chairman on the voting slip in secrecy and fold it as indicated and drop in the voting box placed before the Election Officer.

(13)

The Election Officer shall close polls immediately after all the voters present in the special meeting have cast their votes within the appointed time.

123.

Counting of votes.

- At the end of the poll, the Election Officer shall arrange the counting of votes forthwith and shall record in the results in Form 13.

124.

Declaration of results.

(1)

The candidate who secured the highest number of votes shall be declared as elected for the post of Chairman of the Project Committee, by the Election Officer, and record the same in Form 15A.

(2)

The Election Officer shall issue an election certificate in Form 16 on the same day, and obtain the acknowledgement

(3)

The Election Officer shall send the signed copies of Form 15A to the District Election Authority and the Election Authority.

(4)

The Election Officer shall also display on the notice board at his office a notification signed by him, stating the name of candidate elected for the post of Chairman.

Election of Vice-Chairman

125.

Election procedure.

(1)

The candidates desirous of contesting the post of Vice-Chairman of the Project Committee shall pay a non-refundable nomination fee as prescribed in Rule 126 and obtain the nomination form. (Form 4)

(2)

For the election of Vice-Chairman of the Project Committee, the procedure detailed in this chapter for the election of Chairman to Project Committee shall be followed in the same sequence, subject to condition that the candidate elected as Chairman of Project Committee shall not be eligible to contest for the post of Vice-Chairman.

Chapter VIII

Nomination fee in Farmers Organizations

126.

Nomination fee.

(1)

Any eligible candidate who is desirous of contesting for the post of the member of the Territorial Constituency, President or Vice-President of Water Users Association: President or Vice-President of Distributory Committee: Chairman or Vice-Chairman of Project Committee shall pay a non-refundable nomination fee as mentioned hereunder and obtain the nomination form from the Election Officer concerned.

(a)

Water Users Associations (Major, Medium and Minor Irrigation Systems)

(i) Member of Territorial Constituency

Rs. 200 (Rupees two hundred only)

(ii) President

Rs. 300 (Rupees three hundred only)

(iii) Vice-President

Rs. 200 (Rupees two hundred only)

(b)

Distributory Committees (Major Irrigation Systems)

(i) President

Rs. 500 (Rupees five hundred only)

(ii) Vice-President

Rs. 400 (Rupees four hundred only)

(c)

Project Committees (Medium Irrigation Systems)

(i) Chairman

Rs. 1000 (Rupees one thousand only)

(ii) Vice-Chairman

Rs. 700 (Rupees seven hundred only)

(d)

Project Committees (Major Irrigation Systems)

(i) Chairman

Rs. 2000 (Rupees two thousand only)

(ii) Vice-Chairman

Rs. 1500 (Rupees one thousand and five hundred only)

Explanation. - The above fees prescribed for various posts in Farmers Organizations, are exclusive for that post and are independent of each other.

Example. - A candidate contesting for the post of President of Water Users Association shall have to pay a non-refundable nomination fee of Rs. 200/- at Territorial Constituency level and also Rs. 300/- for the post of President and so on.

(2)

All amounts to be received from the contesting candidates towards nomination fee shall compulsorily be in cash only and no cheque or demand draft etc., shall be accepted by the Election Officer.

(3)

The Nomination fee once paid shall not be refunded to any candidate under any circumstances, nor shall it be adjusted towards any other amounts payable.

127.

Receipt Book.

(1)

Printing of receipt books

(a)

The receipts for acknowledging the nomination fee shall be in Form 17 in duplicate.

(b)

Each receipt book shall contain twenty original receipts and twenty duplicate receipts printed in A-4 size paper (two receipts per sheet) with continuous serial numbers for the district.

(c)

Each receipt book shall also contain an abstract of collections, instructions to Election Officer and District Election Authority and also instructions for printing of receipt books along with details of nomination fee payable by the contesting candidates.

(d)

All the sheets shall be pinned/ stitched in booklet form with printed cover page, as per model receipt book.

(e)

Each receipt book shall contain book numbers i.e., with continuous serial numbers.

(2)

Issue and use of receipt books:

(a)

Receipt books shall be issued in sufficient numbers to each Election Officer for every election in Farmers Organization. The Election Officer shall use the next receipt book only after completion of current receipt book.

(b)

Receipt books partly used in one election shall not be issued for another election.

(c)

No receipt shall be cancelled by the Election Officer, except in the case of any defects in printing.

128.

Duties of election officer.

(1)

acknowledgement and accounting

(a)

the Election Officer shall fill or cause to fill in all the particulars in the receipt and issue the original receipt to the contesting candidate or his proposer after receiving the prescribed nomination fee in cash as given in Rule 126. The duplicate receipt shall be retained in the receipt book.

(b)

the amount received shall be written both in figures and words and any corrections in the receipt book shall be duly attested by the Election Officer (one signature for one correction).

(c)

all receipts shall be signed by the Election Officer and the amount collected through these receipts shall be accounted for by the Election Officer himself.

(2)

Abstract of receipts:

(a)

the Election Officer shall prepare an abstract (single copy) of all the receipts in Form 18 which is a part of receipt book.

(b)

he shall certify that all the names and amounts listed in the abstract are tallied from those in the duplicate receipts.

(3)

Depositing of nomination fee and records:

The Election Officer, shall deposit the following with the Collection Officer after the election is completed and obtain the acknowledgement in Form 21.

(a)

paid challans for the total amount received from the contestants of the concerned Farmers Organisations.

(b)

all receipt books with duplicate receipts, un-used receipts and Certified abstract of collected amounts.

(c)

all other election records and materials.

(4)

The Election Officer shall also perform such other duties as directed by the District Election Authority for proper collection, compilation, accounting of nomination fee, and other records etc.,

129.

Appointment of collection officers and staff.

(1)

The District Election Officer shall designate a Gazetted Officer of the State Government as Chief Officer and required number of officers of State Government or local authority as Collection Officers, along with one Assistant to cash Collection Officer at every collection centre.

(2)

The Collection Officer shall be assisted by one assistant who shall receive the items mentioned in sub-rule (3) under Rule 128 along with all other election records, from Election Officers allotted to him.

(3)

One of the officers along with one assistant in the office of the District Election Authority shall be in charge of all the records (Election and Accounts) related to the election of Farmers Organisations in the district for safe preservation.

(4)

The District Election Authority shall cause all arrangements for depositing the money into Government Treasury by Election Officers, by opening special counter or counter managed by Treasury officials on a special election duty at each collection centre.

130.

Duties of collection officer.

(1)

Verification of accounts:

(a)

the Collection Officer shall personally verify and ensure the following before issuing the acknowledgement for receipt of nomination fee amount (through paid challan) and records of accounts.

(i)

the correctness of the entries of abstract of collection with duplicate receipts.

(ii)

that the amount collected is tallying with the total number and type of posts for which elections were held.

(iii)

that the Election Officer has signed the certificate and recorded his official address.

(b)

the discrepancies if any, between the receipts and the abstract shall be corrected, attested and finalized by the Collection Officer.

(c)

the Collection Officer shall certify the abstract in each receipt book for its correctness.

(2)

Depositing the nomination fee and records:

(a)

the Collection Officer shall fill in the Treasury challan for the total amounts verified and finalized as in sub-rule (1) for all the receipt books together, used by the Election Officer and hand over to the Election Officer concerned for depositing the amount in the Treasury counter specially opened at the collection centre.

(b)

he shall fill in the particulars in the acknowledgement form in duplicate and the original copy shall be issued to the Election Officer, after receipt of challan copy of payment for the total amount.

(c)

he shall finally prepared a general abstract of collections in Form 19 with the information from individual abstracts of

each receipt book and shall certify the same in the general abstract by affixing his signature.

(d)

the receipt books used and unused, the abstracts, acknowledgement books and paid challans etc., shall be deposited with the designated officer in the office of District Election Authority for preservation by each Collection Officer and obtain acknowledgement in Form 20.

(e)

the Collection Officer shall also perform any other duties related to elections as directed by the District Election Authority or the Chief Officer.

131.

Duties of Chief Officer.

(1)

Arrangements for collection and depositing nomination fee:

(a)

the Chief Officer at each collection centre shall co-ordinate the activities of all the Collection Officers for ensuring proper receipt and safe deposit of amounts into the Government Treasury and handing over of all election records to the officer designated in subrule (3) under Rule 129.

(b)

the Collection Officer shall provide all forms and material required to each Collection Officer in performance of his duties.

(c)

the Collection Officer shall cause arrangements for transporting the cash collection at the collected counters to the Government Treasury with proper security arrangements for depositing.

(d)

he shall cause arrangements for transporting the cash collected at the collection counter to the Government Treasury with proper security arrangements.

(2)

Verification of records:

(a)

the Collection Officer shall verify or cause to verify the entries in the general abstracts prepared by the Collection Officers with that of individual abstracts prepared by the Election Officers and ensure correctness.

(b)

he shall also arrange for reconciliation of the total amount with Treasury Office as per General abstracts of all Collection Officers.

(3)

Submission of documents to Election Authority:

The Collection Officer shall be following copies of documents to the Election Authority through District Election Authority within fifteen days from the date of election.

(a)

copies of general abstracts prepared by individual Collection Officers in stitched volumes.

(b)

a reconciliation statement with all the details of collections alongwith a certificate duly signed by the Chief Officer and countersigned by District Election Authority.

(c)

also the original copies of declaration of results (Form 15A) prepared by each Election Officer in stitched volumes.

(d)

original copies of final list of nominations (Form 7) from each Farmers Organization.

(e)

The details of the posts which have been declared as casual vacancies in Form 15C.

(4)

The Chief Officer shall also perform any other duties related to elections as assigned by the District Election Authority or Election Authority.

132.

Preservation of records of accounts.

(1)

The officer designated in subrule (3) under Rule 129 shall preserve all the records of accounts, alongwith other election records till the time of their disposal as directed by the Election Authority.

(2)

The office in charge of these records shall take all the precautions for their safety and security. The records shall be available for inspection by any officer authorized by the Election Authority or District Election Authority.

(3)

The officer in charge shall also maintain the registers of receipts, issues and balances of all stationery, performance, books etc., for use in the elections to Farmers Organization in the subsequent elections.

133.

Head of account for remittance of nomination fee.

- The nomination fee shall be remitted to the following Head of account by the Election Officer at the special Treasury counters in the Collection Centre.

M.II

-

0701 Major and Medium Irrigation, 80 General.

M. 11

-

800 Other Receipts.

S. 11

-

(04) Water Users Associations Elections

Receipts.

134.

Ban on use of nomination fee amount.

(1)

The nomination fee collected from the contestants for various posts in Farmers Organisations shall not be spent for any purpose and shall be deposited into the Government Treasury only.

(2)

Any misuse of nomination fee, by any officer, in any manner, is an offence and punishable under law.

Chapter IX

Poll Discipline and Offences

135.

Admission to the place of scrutiny.

(1)

The Election Officer shall admit the contesting candidates or their proposers at the time of scrutiny of nomination forms.

(2)

He may admit such other persons as he thinks necessary to assist him in scrutiny of nominations including Assistant Election Officers.

(3)

No other persons shall be entitled to be present during the scrutiny of nominations.

136.

Admission to the place of polling.

(1)

The Polling Officer shall see that the election is conducted fairly and peacefully and to that end keep order at the polling station to regulate the number of voters to be admitted at a time and shall exclude all persons other than

(a)

the candidate or his election agent (only one at a time).

(b)

the police and other public servants on duty.

(c)

Polling Assistants and such persons as the polling officer may from time to time, admit for the purpose of identifying voters:

(d)

persons authorized by the Government or Election Authority or District Election Authority:

(e)

a child in arms or a child accompanying a voter; and

(f)

a person accompanying a blind (or) infirm elector who cannot move without help.

(2)

Where a woman voter cannot be identified by the identifying officers appointed under sub-rule (1) by reason of her observing purdah, she may be required to be identified by any of her near relatives unless she otherwise proves her identity before the polling officer.

Explanation. - If a question arises as to whether a person is or is not a near relative within the meaning of this sub-rule, it shall be decided by the polling officer and his decision shall be final.

137.

Admissions to the place of counting.

(1)

Either the contesting candidate or his election agent shall be allowed at the place of counting.

(2)

The Election Officer shall exclude from the place fixed for counting of votes, all other persons except:

(a)

all Polling Officers who are also to participate in counting of votes;

(b)

such persons to be known as counting officers and counting assistants as the Election Officer may appoint to assist him in the counting, as may be necessary;

(c)

persons authorized by the Government or the Election Authority or the District Election Authority; and

(d)

personnel on duty in connection with the election.

138.

Offence of preparing false list of voters.

- Any officer in charge of preparation of voters list, who knowingly prepares or makes an entry in the list of person qualified to be registered in the list as voters for a Territorial Constituency which is false shall be punishable under law.

139.

Poll persons influencing voting.

(1)

An Election Officer or an Assistant Election Officer or a Polling Officer or Polling Assistant or any other persons performing any duty in connection with an election shall not conduct in any manner which helps in the furtherance of the prospects of the elections of any candidate or candidates.

(2)

No such person as aforesaid and no member of police force shall endeavour to;

(a)

persuade any person to give his vote at an election; or

(b)

dissuade any person from giving his vote at an election; or

(c)

influence the voting of any person at an election in any manner;

(3)

Any person who contravenes the provisions of sub-rule (1) and sub-rule (2) shall be punishable under law.

140.

Breach of official duty in connection with elections

- The Election Officers, Assistant Election Officers, Polling Officers, Polling Assistants and any other persons appointed to perform any duty in connection with the preparation of the list of voters or receipt of nominations or withdrawal of candidature or recording or counting of votes at an election shall not act or cause to act in breach of his official duty which is punishable under law.

141.

Removal of voting slips from polling station.

(1)

Any person who at any election, fraudulently takes or attempts to take, a voting slip out of a polling station or willfully aids or abets the doing of any such act, shall be punishable and the Election Officer or Polling Officer or any officer authorized by Election Officer, if he has reason to believe that any person is committing or has committed such an offence, before such person leaves the polling station, direct the police personnel on duty to arrest such person and may search such person or cause him to be searched by a police officer:

Provided that when it is necessary to cause a woman to be searched, the search shall be made by another woman with strict regard to decency.

(2)

Any voting slip found upon the person arrested on search shall be made over for safe custody to a police officer by the Election Officer or when the search is made by a police officer shall be kept by such officer in safe custody.

(3)

An offence punishable under sub-rule (1) shall be cognizable.

142.

Misconduct at the polling station.

(1)

Any person, who during the hours fixed for the poll, at any polling station misconducts himself or fails to obey the lawful directions of the Election Officer or Polling Officer may be removed from the polling station, by the Election Officer or Polling Officer or by any police personnel on duty or by any person authorized in this behalf, by such Election Officer.

(2)

The powers conferred by sub-rule (1) shall not be exercised so as to prevent any voter who is otherwise entitled to vote at a polling station from having an opportunity of voting at that station.

(3)

Any person who has been removed from a polling station, under sub-rule (1), if re-enters the polling station without the permission of the Election Officer, he shall be punishable under the law.

(4)

An offence punishable under sub-rule (3) shall be cognizable.

143.

Disorderly conduct in or near polling stations.

(1)

No person shall, on the date or dates, on which a poll is being conducted, at any polling station:

(a)

use or operate within or at the entrance of the polling station or in any public or private place in the neighbourhood thereof, any apparatus for amplifying or reproducing the human voice, such as a megaphone or a loud speaker or

(b)

shout or otherwise act in disorderly manner, within or at the entrance of the polling station or in any public or private place in the neighbourhood thereof, so as to cause annoyance to any person visiting the polling station for the poll, or so as to interfere with the work of the officers and other persons on duty at the polling station.

(2)

Any person who contravenes or wilfully aids or abets the contravention of the provisions of sub-rule (1) punishable under law.

(3)

If the Election Officer or Polling Officer of a polling station has reason to believe that any person is committing or has committed an offence punishable under this Rule, he may direct any police personnel to arrest such person and

thereupon the police personnel shall arrest him immediately and hand over to the Station House Officer with a complaint signed by Polling Officer in Form 22.

(4)

Any police personnel may take such steps and use such force, as may be reasonably necessary for preventing any contravention of the provisions of sub-rule (1) and may seize any apparatus used for such contravention.

144.

Making false declaration.

- If a person makes in or in connection with any nomination of a candidate for election or any statement or declaration in writing which is false and which he either knows or believes to be false or does not believe to be false or does not believe to be true, he shall be punishable under law.

145.

Other poll offences.

(1)

A person shall be guilty of an electoral offence, if at any election he:

(a)

fraudulently defaces or fraudulently destroys or removes

(i)

any nomination paper; or

(ii)

any list, notice; or

(iii)

other document affixed by or under the authority of an Election Officer; Polling Officer; or

(iv)

any voting slip or any declaration of identity

(b)

without the due authority supplies any voting slip to any person; or

(c)

fraudulently puts into the voting box anything, other than the voting slip, which he be authorized by law, to put in; or

(d)

without due authority destroys, takes, opens or otherwise interferes with any voting box or voting slip then in use, for the purpose of the election; or

(e)

fraudulently or without authority, as the case may be, attempts to do any of the foregoing acts or willfully aids or abets the doing of any such acts.

(2)

Any person guilty of an electoral offence under this Rule shall be punishable under law.

(3)

An offence punishable under this Rule shall be cognizable.

146.

Prohibition of public meeting on the election day.

(1)

No person shall convene, hold or attend any public meeting, on the date or dates on which a poll is taken for an election in that Water User Area.

(2)

Any person who contravenes the provisions of sub-rule (1) shall be punishable under Law.

147.

Prohibition of canvassing in or near polling stations.

(1)

No person shall, on the date or dates on which a poll is taken conducted at any polling station, commit any of the following acts within the polling station or in any public or private place within a distance of one hundred meters radius of the polling station, namely:-

- (a)
canvassing for votes; or
- (b)
soliciting the vote of any elector; or
- (c)
persuading any elector not to vote for any particular candidate; or
- (d)
persuading any elector not to vote at the election; or
- (e)
exhibiting any notice or sign, other than an official notice relating to the election.

(2)
Any person who contravenes the provisions of sub-rule (1) shall be punishable under Law.

(3)
The Election Officer and the Polling Officer shall ensure that no canvassing is done in any form as given in subrule (1) and in such cases of occurrence, he shall immediately instruct the police personnel on duty to act to stop or prevent such activities forthwith.

(4)
An offence punishable under this Rule shall be cognizable.

Note. - In respect of Water Users Associations in Minor Irrigation Systems, for which the polling is taken during the extraordinary general body meeting, the venue of such meeting shall be treated as the polling station for application of the Rules in this chapter.

Chapter X

Settlement of election disputes

148.

Limitation for presentation of election petition

- Save as otherwise provided, no election held under the Act, whether of a member of Territorial Constituency or President or Vice-President of a Water Users Association; President or Vice-President of Distributory Committee, or Chairman or Vice-Chairman of the Project Committee shall be called in question except by an election petition presented in accordance with these Rules to the Election Tribunal as defined in Rule 149 by any candidate or voter against the candidate who has been declared to have been duly elected (here in after called the returned candidate or if there are two or more returned candidates against all or any such candidates).

149.

The Election Tribunal.

(1)
For a Water Users Association:- The District Munsiff, if there is more than one District Munsif, the Principal District Munsiff, having territorial Jurisdiction over the place in which the office of the Water Users Association is located, in respect of the election of members of the Territorial constituencies and President and Vice-President of the Water Users Association.

(2)
For a Distributory Committee:- The Sub-ordinate Judge or if there is more than one Subordinate Judge, the Principal Sub-ordinate Judge, having territorial Jurisdiction over the place in which the office of the Distributory Committee is located in respect of the election disputes and matters pertaining to the election of President and Vice-President of the Distributory Committee.

(3)
For a Project Committee:- The Principal District Judge having territorial jurisdiction over the place in which the office of the Project Committee is located, in respect of the election disputes and matters pertaining to the election of Chairman and Vice-Chairman of the Project Committee.

Explanation. - An Election Tribunal exercising jurisdiction under these Rules shall be deemed to exercise such jurisdiction as a personal designation and not in his capacity as a Judge.

150.

Limitation of time.

- The election petition shall be presented within thirty days from the date of the declaration of the result of the election.

Explanation. - (a) If the Election Tribunal is closed on the last day of the thirty days aforesaid, the petition may be presented to the Election Tribunal on the immediate next working day.

(b)

The petition shall contain a statement in concise form, the material facts on which the petitioner relies and the particulars of any election offences which he alleges and shall, where necessary, be divided into paragraphs numbered consecutively.

(c)

It shall be signed by the petitioner and verified in the manner prescribed for the verification of pleadings in the Code of Civil Procedure, 1908 (Central Act 8 of 1908).

151.

Joinder of parties.

(1)

If the irregularities alleged in the petition are likely to affect the validity of the election of more than one returned candidate, the petitioner shall join as respondent to his petition all such returned candidates.

(2)

The petitioner may, if he so desires, in addition to calling in question the election of the returned candidates or of all or any of the returned candidates, as the case maybe, claim a declaration that he himself or any other candidate has been duly elected, in which case he shall join as respondents to his petition all other candidates who were nominated for the election but who had not withdrawn before the polling.

152.

Security deposit.

- At the time of presentation of the petition, the petitioner shall deposit with it in cash Rs. 1000/- (Rupees one thousand only) as security for the costs of the same.

Explanation. - (a) Where the election of more than one returned candidate is called in question, a separate deposit shall be made in respect of each such returned candidate.

(b)

If the provisions of this Rule are not complied with, the Election Tribunal shall dismiss the petition.

(c)

Upon compliance with the provisions of this Rule, the Election Tribunal shall proceed to enquire into the petition.

153.

Copies of the petition to be served.

(1)

The Election Tribunal shall, as soon as may be, cause a copy of the petition to be served on each respondent and on the concerned District Election Authority.

(2)

Copies shall also be affixed to the notice board of the Election Tribunal and of the office of the Water Users Association, the Distributory Committee or the Project Committee concerned.

(3)

The Election Tribunal may also call on the petitioner to execute a bond for such amount and with such sureties as he may require for the payment of any further costs. At any time within fourteen days after such service or affixing, any other candidate shall be entitled to be joined as a respondent on furnishing such security as may be demanded by the Election Tribunal.

154.

Election Tribunal to enquire.

(1)

Every Election petition shall be enquired into, by the Election Tribunal, as early as may be, in accordance with the procedure applicable under the Code of Civil Procedure, 1908 (Central Act 8 of 1908) for the trial of suits.

Provided that it shall only be necessary for the Election Tribunal to make a memorandum of the substance of evidence of any witness examined by him.

(2)

The Election Tribunal shall have the powers which are vested in a court under the Code of Civil Procedure, 1908 when trying a suit, in respect of the following matters namely.

- (a)
discovery and inspection;
- (b)
enforcing the attendance of witnesses and requiring the deposit of their expenses;
- (c)
Compelling the production of documents;
- (d)
Examining witnesses on oath;
- (e)
Reception of evidence taken on affidavit; and
- (f)
Issuing commission for examination of witnesses, and summons to examine witnesses suo motu whose evidence appears to be material.

155.

Withdrawal of election petition.

- (1)
No election petition shall be withdrawn without the leave of the Election Tribunal.
- (2)
If there are more petitioners than one, no application to withdraw a petition shall be made except with the consent of all the petitioners.
- (3)
When an application for withdrawal is made, notice thereof fixing a date for hearing of the application shall be given to all other parties to the petition and shall be published in the manner specified in Rule 153.
- (4)
No application for withdrawal shall be granted, if the Election Tribunal is of the opinion that such application has been induced by any bargain or consideration which, they consider ought not to be allowed.
- (5)
If the application is granted.
 - (a)
The petitioner shall be ordered to pay the costs of the respondents incurred or such portion thereof as the Election Tribunal may think fit; and
 - (b)
Such withdrawal shall be communicated to the competent authority concerned with the Water Uses Association, Distributory Committee or the Project Committee, as the case may be, and to the District Election Authority concerned by the Election Tribunal.

156.

Execution of the order of cost.

- Any order made by the Election Tribunal as to the costs of the enquiry may be executed in the same manner as if it was a case of arrears of Land Revenue, and be recovered in accordance with the provisions of the Andhra Pradesh Revenue Recovery Act, 1864 and be remitted to the party in whose favour it is ordered by the Election Tribunal.

157.

Abatement of election petition.

- An election petition shall abate on the death of a sole petitioner or of the survivor several petitioners; and such statement shall be communicated to the competent authority of Water Users Association, the Distributory Committee or the Project Committee, as the case may be, and the concerned District Election Authority by the Election Tribunal.

158.

Returned candidate to prove.

- An enquiry into an election petition of any candidate, other than a returned candidate, claims the seat for himself, the returned candidate or candidates or any other party to the proceedings may give evidence to prove that the election of

such candidates would have been void if he had been a returned candidate and a petition had been presented complaining of his election.

159.

Election Offences.

(1)

If in the opinion of the Election Tribunal

(a)

that on the date of his election, a returned candidate was not qualified, or was disqualified, to be chosen to fill the seat under the Act or Rules;

(b)

that any election offence as defined in Chapter IX-A of the Indian Penal Code, 1860 has been committed by a returned candidate or his election agent or by any other person with consent of the returned candidate or his election agent; or

(c)

that any nomination has been improperly rejected; or

(d)

that the result of the election, in so far as it concerns a returned candidate has been materially affected -

(i)

by the improper acceptance of any nomination; or

(ii)

by any election offence committed in the interest of the returned candidate by an agent other than his election agent, with the connivance of the returned candidates; or

(iii)

by the improper reception, refusal or rejection of any vote, or the reception of any vote which is void; or

(iv)

by any non compliance with the provisions of the Act, or any Rules or Orders made under the Act; the Election Tribunal shall declare the election of the returned candidate to be void.

(2)

If the Election Tribunal holds the returned candidate guilty under clause (1) (b) and clause 1(d) (ii) of this Rule, the Election Tribunal shall in addition to declaring the election of the returned candidate as void, shall also declare that the returned candidate shall be disqualified to contest in any elections under this Act. for a period of six years from the date of the order.

160.

Petitioner to prove his election.

- If any person who has lodged a petition, has in addition to calling in question, the election of the returned candidate claimed a declaration that he himself, or any other candidate, has been duly elected and the Tribunal is of the opinion: -

(a)

that in fact, the petitioner or such other candidate, received the majority of the valid votes, or

(b)

that, but for the votes obtained by the returned candidate, by election offences, the petitioner or such other candidate would have obtained a majority of the valid votes:

the Election Tribunal shall after declaring the election of the returned candidate to be void, declare the petitioner or such other candidate, as the case may be, to have been duly elected.

161.

Disqualification for voting.

- Any person disqualified by decision of the Election Tribunal under Rule 159(2) for any period shall be disqualified for the same period for voting any elections under the Act.

162.

Declaration by the Tribunal.

(1)

At the conclusion of the enquiry, the Election Tribunal shall declare whether the election of the returned candidate or candidates is void under Rule 159 and Rule 160.

(2)

If Election Tribunal declares the election of the returned candidate or candidates void he shall further pass an order either.

(a)

declaring that any other party to the petition who has under these Rules claimed the seat has been duly elected:

or

(b)

order a fresh election.

(3)

The order of the Election Tribunal under sub-rule (1) and sub-rule (2) shall be final.

(4)

A copy of every order under sub-rule

(1)

or sub-rule (2) shall be communicated to the competent authority of the Water Users Association, the Distributory Committee and the Project Committee as the cases maybe, and the concerned District Election Authority.

Form IA

Government of Andhra Pradesh

Irrigation & Command Area Development Department

Notification for Elections to the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations

(Major and Medium Irrigation System)

(see Section 4 of the Act)

(1)

In exercise of powers conferred under Rule 71(1) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules, 2003, it is hereby notified that:

(2)

Elections to fill the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations under Major and Medium Irrigation Systems of Andhra Pradesh, shall be conducted during the period from /20..... to /20.....

(3)

The exact date or dates of elections for the individual Water Users Associations shall be notified by the respective District Election Authorities.

Station:Date

Signature.....Full name.....

(in capitals) (Election Authority)

Form IB

Government of Andhra Pradesh

Irrigation & Command Area Development Department

Notification for Election to the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations

(Minor Irrigation Systems)

(see Section 4 of the Act)

(1)

In exercise of powers conferred under Rule 46(1) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules 2003, it is hereby notified that:

(2)

Elections to fill the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations under Minor Irrigation Systems of Andhra Pradesh, shall be conducted during the period from /...../20 to / /20.....

(3)

The exact date or dates of elections for the individual Water Users Associations shall be notified by the respective

District Election Authorities.

Station:Date:

Signature.....Full name.....

(in capitals) (Election Authority)

Form IC

Government of Andhra Pradesh

Irrigation & Command Area Development Department

Notification for Election to the posts of Presidents and Vice-Presidents of Distributory Committees/Chairman and Vice-Chairman of Project Committees

(Major and Medium Irrigation Systems)

(see Section 6 and 8 of the Act)

(1)

In exercise of powers conferred under Rule *101(1)/*114(1) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules, 2003, it is hereby notified that:

(2)

Elections to fill the posts of *Presidents and Vice-Presidents of Distributory Committees under Major Irrigation Systems and *Chairmen and Vice-Chairmen of Project Committees under Major and Medium Irrigation Systems, of Andhra Pradesh shall be conducted during the period from /20.....to...../ 20.....

(3)

The exact date or dates of elections for individual *Distributory Committees or *Project Committees shall be notified by the respective District Election Authorities.

Station:Date:

Signature.....Full name.....

(in capitals) (Election Authority)

* Strike out whichever is not applicable.

Form 2A

Government of Andhra Pradesh

Irrigation & Command Area Development Department

Notification for Election to the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations

(see Section 4 of the Act)

In exercise of the powers conferred by Rule 71(2) of the Andhra Pradesh Farmers Management Irrigation Systems (conduct of elections) Rules 2003 and in pursuance of the notification issued by Election Authority vide Gazette Notification No.....dated..... it is hereby notified that the elections to fill the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations under Major and Medium Irrigation Systems in district shall be conducted as per the schedule given below.

of Elections

(Major and Medium Irrigation Systems)

Phase No.

Period (dates)

Names of Water Users Association covered

From To

Station:Date:

Signature.....Full name.....

(in capitals) (District Election Authority)

Form 2B

Government of Andhra Pradesh

Irrigation & Command Area Development Department

Notification for Election to the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water users Associations

(see Section 4 of the Act)

In exercise of the powers conferred under Rule 46(2) of the Andhra Pradesh Farmers Management Irrigation Systems (conduct of elections) Rules 2003 and in pursuance of the notification issued by Election Authority vide Gazette Notification No.....dated..... it is hereby notified that the elections to fill the posts of Members of Territorial Constituencies, Presidents and Vice Presidents of Water Users Associations under Minor Irrigation Systems in.....district shall be conducted as per the schedule given below:

of Elections

(Minor Irrigation Systems)

Phase No.

Date

Names of Water Users Associated covered

Station:Date:

Signature.....Full name.....

(in capitals) (District Election Authority)

Form 2C

Government of Andhra Pradesh

Irrigation and Command Area Development Department

Notification for Election to the posts of *Presidents and Vice-Presidents of Distributory Committees/*Chairman and Vice-Chairman of Project Committees

(See Section 6 and 8 of the Act)

In exercise of the powers conferred under Rule *101 (2)/* 114(2) of the Andhra Pradesh Farmers Management Irrigation Systems (conduct of elections) Rules 2003 and in pursuance of the notification issued by Election Authority vide Gazette Notification No.....Dated.....it is hereby notified that the elections to fill the posts of Presidents and Vice-Presidents of Distributory Committees under Major Irrigation Systems/*Chairmen and Vice-Chairmen of Project Committees under Major and Medium Irrigation Systems in district shall be conducted as per the schedule given below:

of Election

(Major and Medium Irrigation Systems)

Phase No.

Date

Names of *Distributory Committees/ *Project Committees covered

Station:Date:

Signature.....Full name.....

(in capitals) (District Election Authority)

* Strike out, whichever is not applicable

Form 3A

Government of Andhra Pradesh Irrigation and Command Area Development Department Public notice for Election to posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations.

1. In exercise of the powers conferred under Rule 71(3) of the Andhra Pradesh Farmers Management Irrigation Systems (conduct of elections) Rules 2003 and in pursuance of the notification issued by the District Election Authority of. District, vide Gazette notification No dated.....notice is hereby issued for election to fill the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents ofWater Users Associations under Major an Medium Irrigation Systems inVillage.....Mandal.....District.

2. The period of election and

3. Venue of the Election office and address.....

4. Candidates desirous of contesting shall have to pay a non-refundable nomination fee of Rs. 200/- (Rupees two hundred only) for the post of Member of Territorial Constituency and Rs. 300/- (Rupees three hundred only) for the post of President and Rs. 200/- (Rupees two hundred only) for the post of Vice-President of Water Users Association and obtain Nomination form from the Election Officer.

of Elections (Major and Medium Irrigation)

Sl.No.

State of election

Time

(1)

(2)

(3)

First day(nominations)

1.

Receipt of nominations from the contesting candidates for the Election of Members of Territorial Constituencies.

9.00 - 12.00 Noon

2.

Scrutiny of nominations and publication of nominations

12 Noon - 2.00 PM

3.

Withdrawal of candidature 2.00 - 4.00 PM

4.

Publication of final list of Contestants and allotment of election symbols till completion Secondary (polling and results)

4.00 PM onwards

5.

Polling to elect members of Territorial Constituencies

7.00 - 1.00 P.M.

6.

Counting of votes and declaration of results

2.00 - 4.00 P.M.

7.

Special Managing Committee meeting

4.00 - 4.30 P.M.

(i) Fixing tenures

(ii) Election to the posts of President and Vice-president and Declaration of results

4.30 P.M. onwards till completion on the same day.

Station:Date:

Signature.....Full name.....

(in capitals) (Election Officer)

Form 3-B

Government of Andhra Pradesh

Irrigation and Command Area Development Department Public notice for the Election to the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of Water Users Associations

1. In exercise of the powers conferred under Rule *46(3) of the APFMIS (conduct of elections) Rules 2003 and in pursuance of the notification issued by the District Election Authority of. District, vide Gazette Notification No dt.....Notice is hereby issued for election to fill the posts of Members of Territorial Constituencies, Presidents and Vice-Presidents of. Water Users Association under Minor Irrigation Systems Village Mandal district, in the Extra Ordinary General Body Meeting.

2. The date of election

3. Venue of the election office and address

4. Candidates desirous of contesting shall have to pay a non-refundable Nomination fee of Rs. 200/- (Rupees two

hundred only) for the post of Member of Territorial Constituency and Rs. 300/- (Rupees three hundred only) for the post of President and Rs. 200/- (Rupees two hundred only) for the post of Vice-President of Water Users Association and obtain the nomination forms from the Election Officer.

of Election (Minor Irrigation Systems)

Sl.No

State of election

Time

(1)

(2)

(3)

One day Election

1.

Starting time for convening Extraordinary

General Body Meeting for elections and issue of nomination forms

9.00 AM.

2.

Cut off time for allowing voters into the hall/

pandal and guide them to sit Territorial Constituency - wise

10.00.A.M.

3.

receipt of nominations from contesting

candidates for the post of Members of Territorial

Constituencies.

10.00 - 10.30 A.M.

4.

Scrutiny of nominations, withdrawal of

candidature, and declaration of final list of contestants

(Territorial Constituency wise)

11.00 -11.30 A.M.

5. Election to Members of Territorial

Constituencies and declaration of results (Territorial

Constituency wise)

11.00 A.M. onwards till completion of election

6.

Special Managing Committee meeting

2.30 - 3.00 PM

(i) Fixing up of tenures

(ii) Election to the posts of President and

Vice-President and Declaration of results

3.00 PM onwards till completion on the same day

Station:Date:

Signature.....Full name.....

(in capitals) (Election Officer)

Form 3-C

Government of Andhra Pradesh

Irrigation and Command Area Development Department Notice for election to the posts of *Presidents and Vice-Presidents of Distributory committees/Chairman and Vice-Chairmen of Project Committees

1. In exercise of the powers conferred under Rule * 101 (4)/* 114(4) of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules 2003 and in pursuance of the notification issued by the District Election Authority of. District, vide Gazette notification dated Notice is hereby issued for election to fill the posts of President and Vice-President of.....Distributory committee/*Chairman and Vice-Chairman of.....Project Committee.

2. The date of election

3. Venue of the election office and address.....

4. candidates desirous of contesting shall have to pay a non-refundable nomination fee as detailed overleaf and obtain the nomination from the Election Officer.

5. The schedule of election is as follows:

of Election (Major and Medium Irrigation Systems) (A) for *President/*Chairman

Sl.No.

Stage of Election

Time

1.

Receipt of nominations for the post of

*President/*Chairmen

9.00 - 9.30 AM

2.

Scrutiny of nominations and publication of list

of contesting candidates

9.30 - 9.45 AM

3.

Withdrawal of candidature

0.45 - 9.55 AM

4.

Publication of final list of candidates

10.00 AM

5.

Election in the event of contest

10.00 - 10.30 AM

6.

Counting and declaration of results

immediately after poll

(B)

For *Vice-President/*Vice-Chairman

Sl.No.

State of Election

Time

1.

Receipt of nominations for the post of

*Vice-President/*Vice-Chairmen

1.00 - 11.30 AM

2.

Scrutiny of nominations and publication of list

of contesting candidates

11.30 - 11.45 AM

3

. Withdrawal of candidature

11.45 - 11.55 AM

4.

Publication of final list of candidates

12.00 Noon

5.

Elections in the event of contest

12.00 Noon - 12.30 PM

6.

Counting and declaration of results

immedicately after poll

DC/PC Elections : Notice

(Major and Medium Irrigation Systems)

6. The *President of. Water Users Association/*President of Distributor Committee is requested to attend the meeting alongwith original certificates of election at the venue mentioned without fail for electing the *President and Vice-President of Distributory Committee/*Chairman and Vice-Chairman of. Project Committee.

Station:Date:

Signature.....Full name.....

(in capitals) (Election Officer)

To Sri/Smt/KUM.....President of(name of WUA/DC As per records)Village/town.....Mandal.....District.....Pin Code.....

* Strike out whichever is not applicable.

The nomination fee as per Rule 126(1) of the Election Manual

Sl.No.

Name of the Post

Non-Refundable nomination fee

1.

Vice-President of DC

:

Rs. 400/-

2.

President of DC

:

Rs. 500/-

3.

Vice-Chairman of PC (Medium)

:

Rs. 700/-

4.

Chairman of PC (medium)

:

Rs. 1000/-

5.

Vice-Chairman of PC (Major)

:

Rs. 1500/-

6.

Chairman of PC (Major)

:

Rs. 2000/-

Note. - For purpose of this notice either for Distributory Committee or Project Committee - Refer Rules 100, 101, 113, and 114 of Election Manual.

This form is issued to Sri/Smt. Kum.....(Candidate's name to be written by Election Officer before issue)

Elections : Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Form 4

Nomination Form

ToThe Election Officer,

S.No.....

(Pre-printed)

Serial Number of nomination form

{|

|-

| (name of the farmers
organization)

| (as received during
election)

|}

I wish to contest the election for the following
post and furnish my personal details here under.

Name of the post contesting.....

Irrigation system.....

(name of Irrigation system)1

Farmers

Organisation.....

(name of the farmers organisation)2

Town/village ?..... Mandal

..... District.....

1. Personal particulars

(a) Full name :

Sri/Smt/Kum.....

(surname)

(full name)

(b) Father/Husband name :

Sri.....

(surname)

(full name)

(c) Serial No. in the voters list

{|

| (contesting
candidate)

|-

| (d) Whether belongs
to

| {|

|-

| SC

| ST

| BC

| OC

| OBC

|}

| (please put tick ()
Mark)

|-

| (e) Age: Years (f)

Gender

| {|

|-

| Male
 | Female
 |}
 | (please put tick ()
 mark)
 |-
 | (g) Total extent of
 land (i) Owned
{
}
acres
(ii) Leased
{
-
}
acres
-
(h)
Occupation.....(i) Educational qualification.....
-
(j) Address of
contesting candidate:
-
House No
Street No..... Town/village.....
Mandal.....District.....
}
 1. Name of the irrigation system eg: major/medium/minor irrigation.
 2. Name of the WUA/DC/PC as per records.
 2. Details of The Proposer
 (a) Full name :
 Sri/Smt./Kum.....
 (b) Father/Husband name :
 Sri.....
 (c) Serial No. in the voters list
 {
 | (proposer)
 |-
 |
 | Signature
 ?.....
 |-
 |
 | (proposer)
 |-
 | Elections : Farmers
 Organisations
 |-

| (Common for
Major/Medium/Minor Irrigation Systems)

|}

3. Declaration

(by the contesting candidate)

I solemnly affirm and state as follows:

1. I am a registered voter in the current voters list at serial number and that my proposer is also a registered voter in the current list at serial number.....
2. I am years (in words.....) old as on the date of this nomination.
3. I am not a village servant or an officer or a servant of the Government of India or any State Government or a local authority or an employee of any institution receiving aid from the funds of the Government.
4. I was not convicted by a Criminal Court for any offence involving moral turpitude committed under any law for the time being in force.
5. I am with a sound mind and I am not an application to be adjudicated as an insolvent or an un-discharged insolvent.
6. I am not a defaulter of land revenue or water tax or charges payable either to the Government or to the Farmers Organization.
7. I am neither a Member of Legislature Assembly nor a Member of parliament nor office bearer of any body constituted under law made by Legislature of State or of parliament.
8. I was not removed from any post of office bearer in the Farmers Organization previously by the Government or the Commissioner, Command Area Development.
9. I am eligible for contesting election under all the provisions of Section 14 of the APFMIS Act, 1997.
10. I do not have children in violation of the provisions in Section 14 of the APFMIS Act, 1997.
11. I have paid an amount of Rs...../- (Rupees.....only) towards non-refundable nomination fee vide receipt No Dated...../...../20.....issued by the Election Officer.

The above particulars furnished by me are true to the best of my knowledge and if they are found to be incorrect at any time during my tenure, I am liable for removal from the post or posts I hold in the Farmers Organization and I shall be debarred from contesting for any post in Farmers Organisations for six years from the date of the order.

Station:Date:

Signature.....

(contesting candidate)

Witness 1Signature.....Full Name.....Address.....Elections : Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Witness 2Signature.....Full name.....Address.....

4. Scrutiny of Nominations

(By the Election Officer)

1. This nomination form is presented to me by

Sri/Smt/Kum.....

(name of the contesting candidate/proposer)

*candidate/*proposer in person on this day

of..... /.....20....at.....(AM/PM).

(dd mm yy)

2. I have scrutinised this nomination form in accordance with rules of election manual and the nomination is

{|

| (Decision to be

written as Accepted/Rejected in the box)

|-

| 3. The nomination is

rejected for the following reasons (if rejected)

|-

| ?.....

|-

| 4. The above
information is entered in the Form-6 displayed on the notice
board.

|-

| Station:

|

| Signature.....

|-

| Date.....

|

| Full
name.....

|-

|

|

| (Election Officer)

|}

5. Withdrawal of Nomination

(By the contesting candidate)

I.....

(surname)

(full name)

a candidate validly nominated for the election
for the post

of.....

(name of the post contested)

do hereby willfully withdraw my candidature.

Station:

Signature.....

Date:

(contesting candidate)

* Strike out whichever is not applicable.

TABLE END

6. Remarks

(By the Election Officer)

The above withdrawal is accepted and entered in the Form-6 displayed on the notice board. Elections: Farmers
Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Signature.....

(Election Officer)

Instructions to the contesting candidates

(Please read the following instructions carefully before filling the nomination form)

(A)

Nomination form

1. Nomination form will be issued to any eligible candidature of a Farmers Organisation on payment non-refundable
nomination fee as detailed below:

Post contesting

Fee

(a)

T.C. Member

:

Rs. 200

(b)

Vice President WUA

:

Rs. 200

(c)

President of WUA

:

Rs. 300

(d)

Vice-President of DC

:

Rs. 400

(e)

President of DC

:

Rs. 500

(f)

Vice-Chairman of PC (Medium)

:

Rs. 700

(g)

Chairman of PC (Medium)

:

Rs. 1000

(h)

Vice-Chairman of PC (Major)

:

Rs. 1500

(i)

Chairman of PC (Major)

:

Rs. 2000

2. All particulars shall be filled in with neat handwriting and duly signed by himself and his proposer alongwith the declaration, and shall be submitted to the Election Officer, at the time and date appointed for the purpose.

(B)

Withdrawal

3. Any Candidate who wishes to withdraw his candidates for any reason may do so by signing at the place provided in the nomination form during the prescribed time on the same day of filing nominations.

4. A Candidate once withdrawn as mentioned in paragraph (3) above, will not be allowed to cancel his withdrawal under any circumstances and the nomination fee once paid will not be refunded.

(C)

Election Agent

5. A contesting candidate may appoint one person to be his election agent as to represent on his behalf for all transactions connected with the election including as a polling agent at polling station and counting agent at the place of counting (only in case of election to the Members of Territorial Constituencies of Major and medium Irrigation Systems).

Instructions to the Election Officer

1. The Election Officer shall issue the nomination form on receipt of prescribed nomination fee and after writing the name of the contesting candidate at the place provided on the top of the first page, invariably.

2. After scrutiny of nomination, the Election Officer shall enter his remark as "Accepted"/ "Rejected" in the space

provided (with reasons - in case of rejection)

3. The Election Officer shall modify the final list of contesting candidates displayed at the election office duly effecting, attesting the changes if any, including withdrawal information.

4. The Election Officer shall accept only one nomination form on behalf of a contesting candidate.

5. It is the personal responsibility of the Election Officer to ensure that the proper amount of nomination fee is paid by the contesting candidate for the post contesting, before accepting the nomination form.

Elections: Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Form 5

S.No.

Receipt for nomination

?.....

(name of the WUA/DC/PC as per records)

The filled in nomination form of

Sri/Smt./Kum.....

(name of the contesting candidate)

son/wife/daughter of

Sri.....a

candidate for the

(father or husband name)

election to the post

of.....was

delivered to me

at.....

(name of the post contested)

(hour and minutes)

on/...../20.....by

Sri/Smt./Kum.....

(name of the candidate/proposer)

and entered at serial number

{

| in the list of

nominations received

}

(Form-6)Station:Date:Elections: Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Signature.....Full name.....

(Election Officer)

Instructions to the Election Officer

1. On receiving of the nomination form, this receipt shall be issued to the person who delivers the nomination form by the Election Officer.

2. The nomination form shall be received only during the hours and date appointed for the purpose.

3. The Election Officer while issuing this receipt should verify the duplicate copy of the cash receipt to ensure about the payment of non-refundable nomination fee by the candidate.

4. The Election officer shall account for the nomination fee tallying with the total number of nominations received by him, as detailed in chapter 8 of the Election Manual.

5. The Election Officer shall use the next receipt book, only after completion of the receipt book used earlier.

6. Receipt books partly used in one election shall not be used for another election.

7. No receipt shall be cancelled by the Election Officer, except in the case of any defects in printing.

Elections: Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Form 6

List of nominations received

TC No.

{|

|-

|

| (for TC election only)

|-

| Post.....

|

|-

|

| (name of the post
contesting)

|

|-

| Farmers

Organisation.....

|-

|

| (name of the farmers
organisation)

|-

| Village.....Mandal.....District.....Irrigation
system.....

|-

|

|

| (name of the irrigation
system)

|}

Sl.No.

Details of Candidates

Rejected

(Yes/No)

Withdrawn

(Yes/No)

(1)

(2)

(3)

(4)

Name : Sri/Smt/Kum ?..... Age ?....

yrs. son/wife/ daughter Sri ?..... Occupation

S.No. in voter list ?..... address ?.....

Proposer: Sri/Smt./Kum..... S.No. in voter
list.....

Name : Sri/Smt/Kum..... Age.....

yrs. son/wife/ daughter of Sri ?.....

Occupation ?..... S.No. in voter list

?..... address ?..... Proposer:

Sri/Smt./ Kum..... S.No. in voter list

?.....

Name : Sri/Smt/Kum..... Age

?..... yrs. son/wife/ daughterof Sri ?.....

Occupation..... S.No. in voter list.....

address..... Proposer: Sri/Smt./ Kum ?.....

S.No. in voter list ?.....

Date of PollingElections : Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

SignatureFull name.....

(in capitals) (Election Officer)

Instructions to the Election Officer

1. The details shall be filled in with neat hand writing in Telugu language and signed on original and duplicate, as when the nomination form is received.

2. This form shall be filled in post-wise (in case of TC members it shall be Territorial Constituency-wise).

3. The original copy of this form shall be displayed on the notice board at the election office immediately after the closure of time fixed for the receipt of nomination forms.

4. The duplicate copies in stitched volume shall be deposited with the District Election Authority for preservation.

1. Name of the post-Member, Territorial Constituency/President/Vice-President/Chairman/ Vice-Chairman.

2. Name of WUA/DC/PC as per records.

3. Name of Irrigation system - Major, Medium or Minor Irrigation System

5. When a candidate withdraws his nomination by registering his withdrawal at the place provided in the nomination form, the Election Officer shall attest the same and record it in this form also.

6. Immediately after all the nomination forms have been scrutinised and the decision of accepting or rejecting the same has been recorded, the Election Officer shall write the same in the relevant column against each name in this form affixed already on the notice board at his office.

TC - Territorial ConstituenciesWUA - Water Users AssociationElections : Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

DC - Distributory CommitteePC - Project Committee

Form 7

Final list of contesting candidates

TC No.

{|

|-

|

| (for TC election only)

|-

| Post.....

|

|-

|

| (name of the post

contesting)

|

|-

| Farmers

Organisation.....

|-

|

| (name of the farmers

organisation)

|-

| Village.....Mandal.....District.....Irrigation
system.....

|-

|

|

| (name of the irrigation
system)

|}

Sl.No.

Name of the contesting candidate and father's/
husband's name

Election symbol allotted (wherever applicable)

(1)

(2)

(3)

1.

2.

3.

4.

5.

6.

7.

8.

9.

POT

WOMAN

PLOUGH

BRINJAL

RING

COCK

BELL

SEWING MACHINE

TABALA

Abstract of Nominations

No of nominations received

{|

| withdrawn

| {|

|-

|

|}

| Balance

| {|

|-

|

|}

|-

|

| Signature.....

|-

| Polling date

| Full
name.....

|-

|

| (in capitals) (Election
Officer)

|-

| Elections : Farmers
Organisations

|-

| (Common for
Major/Medium/Minor Irrigation Systems)

|}

1. Name of the post - Member, Territorial Constituency/President/Vice-President/Chairman/Vice-Chairman.

2. Name of WUA/DC/PC as per records.

3. Name of Irrigation System-Major, medium or Minor Irrigation System.

Instructions to the Election Officer

1. This form is common for all the posts in Farmers Organisations.

2. After scrutiny of the nominations, the Election Officer shall prepare the final list of persons whose nominations have been accepted and who have not withdrawn their candidature.

3. The names of the candidates shall be written in alphabetical order in Telugu Language.

4. In case of election to Members of Territorial Constituencies in Major and Medium Irrigation Systems:

(a)

Separate forms shall be filled in for each Territorial Constituency.

(b)

Every contesting candidate or his proposer shall be informed forthwith the symbol assigned to him and be supplied with a printed specimen thereof by the Election Officer.

(c)

The name of symbol allotted shall be written in column No. 3 in this form.

5. the original copy of this form with all details shall be retained in this book for onward submission to the Election Authority.

6. The duplicate copy shall be displayed on the notice board at the election office.

7. The triplicate copy shall be retained In the book as an office copy.

Instructions to the District Election Authority

1. Original copies of this form shall be sent to the Election Authority within fifteen days after the completion of the respective election by the District Election Authority.

2. The triplicate copy of this form shall be preserved with the District Election Authority under the personal custody of a designated officer, in his office.

Elections : Farmers Organisations

(Major/Medium Irrigation Systems)

Form 8

Appointment of Election Agent

(Applicable only in the case of Election to Members of Territorial Constituencies in Water Users Associations in Major and Medium Irrigation Systems only)

Territorial Constituency No.

{|

|}

To

The Election Officer.

(name of the water users association as per
records)

I.....
...
(surname)
(full name of the contesting candidate)
a candidate for the election to the member of
Territorial Constituency of the above Water Users Association do
her by appoint the following person as my Election Agent from
this day at the above election to represent on my behalf for all
transactions connected with this election including as a polling
agent at the Polling station and also as a counting agent at the
place of counting.
The specimen signature of the agent is attested
below.
Name of the agent
Sri/Smt./Kum.....
(Surname)
(full name)
Son/wife/daughter of
Sri.....
(Surname)
(full name)
Age
{
| Years
| Gender
{
Male
Female
}
(put tick () mark)
-
House No Street
Town/Village.....
Mandal.....
-
District
?.....
Specimen signature of
the Election Agent
{
-
}
-
Station:
Signature.....
-
Date:
Full
name.....

-
|
| (contesting candidate)
-
| Acceptance by the
Election Agent
-
| (to be signed before
the Election Officer)
-
| I hereby accept the
above appointment and abide by the rules of election manual in
performing all my functions thereof.
-
| Signature.....
-
| Full
name.....
-
| (Election Agent)
-
| Elections : Farmers
Organisations
-
| (Major/Medium
Irrigation Systems)
-
| Approval of the
Election Officer
-
| (Office use only)
-
| I hereby approve the
above appointment of the Election Agent to act on behalf of the
said contesting candidate during the process of election.
-
| Station:
| Signature.....
-
| Date:
| Full
name.....
-
|
| (in capitals) (Election
Officer)
-
| Instructions to the
Election Agents
-
| 1. This Order of

appointment of Election Agent by the contesting candidate shall be submitted to the Election Officer, who shall return the same to the Election Agent, after his approval.

| -

| 2. The Election Agent

shall obtain election pass on surrender of this approved letter to the Polling Officer concerned.

| -

| 3. Only one Election

Agent for one contesting candidate is allowed.

| -

| 4. The Election Agent

shall have a right to represent himself and sign any document on behalf of the contesting candidate.

| -

| 5. The Election Agent

shall have a right to present himself at the polling station and also at the place of counting, provided that either the contesting candidate or his Election Agent shall be allowed, (only on at a time).

| -

| 6. The non-attendance

of the Election Agent at the time and place appointed for the purpose shall not invalidate any action done by officers on election duty in their absence.

| -

| 7. Any person who is

in unlawful possession of the election pass mentioned at item (2) above or on impersonation shall be liable for prosecution.

| -

| 8. The Election Agent

shall perform all functions as prescribed in the Rules. Any violation of discipline, his order of appointment shall be cancelled forthwith by the Polling Officer, without any notice to the contesting candidate.

| -

| Elections : Farmers

Organisations

| -

| (Common for

Major/Medium/Minor Irrigation Systems)

| }

Form 9-A Omitted (Contains symbols)

Form 9-B

Voting Slip

(Election to President/Vice-President of Water Users Association/Distributory Committee and Chairman/Vice-Chairman of Project Committee)

?.....

(name of WUA/DC/PC as per records)

S.No.

Post ?.....

(pre-printed) (name of the post contested)

Sl.No.

Name of the candidate in Telugu alphabetical order

Put Tick (4) mark

(1)

(2)

(3)

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

11.

12.

Elections : Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Instructions to the Election Officer

1. The Election Officer shall write or cause to write the required particulars in this voting slip and sign on the back of the voting slip, before issue.
2. The name of the contesting candidate shall be in alphabetical order in Telugu language on all the voting slips.
3. All the members of the Managing Committee shall have a right to vote in secrecy.
4. The Election Officer shall obtain the acknowledgement in Form - 9-D from the members, before issuing the voting slip.
5. To maintain the secrecy of voting the Election Officer shall shuffle the voting slips before issue.

Important: - The printed serial number of the voting slip issued to a voter shall not be mentioned in Form-9-D or noted anywhere in the election records.

Elections : Farmers Organisations

(Major/Medium/Minor Irrigation Systems)

Form 9-C

Attendance sheet - Election through Raising of Hands

(Election to TC members in Minor Irrigation Systems, President/Vice-President of Water Users Association/Distributory Committee and Chairman/Vice-Chairman of Project Committee)

?.....

.....

(name of Farmers Organisation as per records)

Post.....

Town/village.....

Territorial Constituency No.

{|

|-

| Mandal.....

|

| (MI systems only)

|-

| District.....

| Date of Polling

Signature /Thumb Impression of voter

Signature/Thumb Impression of voter

(1)

(2)

(3)

(4)

(Common for Major/Medium/Minor Irrigation Systems)

Signature.....Full name.....

(in capitals) (Polling Officer)

Form 9-D

Acknowledgement - Election through Voting Slips

(Election to the President/Vice-President of Water Users Association/Distributory Committee and Chairman/Vice-Chairman of Project Committee)

.....?

(name of Farmers Organisation as per records)

Post.....

Irrigation

System.....

(name of the post contested)

(name of the Irrigation system)

Town/village.....

Mandal.....

District.....

Date of

Polling.....

1. Name of the Farmers Organisation as per records.

2. Name of the post contested - President, Vice-President, Chairman or Vice-Chairman.

3. Name of Irrigation System - Major, medium or Minor Irrigation System.

Sl.No.

Name of the voter and father's name

Signature / thumb impression of voter

(1)

(2)

(3)

Station:Date:Elections : Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Signature.....Full name.....

(in capitals) (Election Officer)

Instructions to the Election Officer

1. Before issuing the voting slip, the signature/thumb impression along with the full name of the voter shall be obtained in this acknowledgement sheet.

2. To maintain the secrecy of voting the Election Officer shall shuffle the voting slips before issue.
3. The printed serial number of the voting slip issued shall not be mentioned in this form or noted anywhere.
4. For electing the President or the Chairman of a Farmers Organisation, as the case may be, only one voting slip shall be issued to each of the members present.
5. For electing the Vice-President or the Vice-Chairman of Farmers Organisation, as the case may be, only one voting slip shall be issued to each of the members present, after President/Chairman election is completed.
6. The voting slips cancelled for reasons whatsoever shall be accounted for.

Form 10

List of Tendered Voting Slips

Elections : T.C. Members

(Major and Medium Irrigation systems) Name of the Water Users Association.....

(as per records)

Territorial Constituency No.

{

}

Sl. No.

Name of the voter

S.No. in voters list

Voting slip number

Signature /Thumb impression of the voter

Number of voting slip issued to the person
already voted

(1)

(2)

(3)

(4)

(5)

(6)

Station:Date:Elections : Farmers Organisations

(Major/Medium Irrigation Systems)

Signature.....Full name.....

(Polling Officer)

Instructions to the Polling Officer

Extract of Election Manual

Rule 22 Tendered votes

(1)

If a person representing himself to be a particular voter, applies for a voting slip after another person has already voted as such voter, he shall, on satisfactorily answering such questions relating to his identity as the Polling Officer may ask, be entitled, subject to the following provision to mark voting slip (hereinafter in these rules referred to as a "Tendered voting slip) in the same manner as any other voter.

(2)

Every such person, shall, before being supplied with a tendered voting slip, sign his name against entry relating to him in Form 10.

(3)

A tendered voting slip shall be the same as the voting slip used at the polling except that it shall be:

(a)

taken serially from the bottom of the last bundle of voting slips issued for use at the polling station in successive cases:
and

(b)

endorsed on its back with the words "Tendered voting slip" by the Polling Officer in his own hand writing and signed by him.

(4)

The voter, after marking a tendered voting slip in the voting compartment and folding it, shall instead of putting it into the voting box, give it to the Polling Officer, who shall keep it separately bundled and properly accounted for.

Form 11

List of Challenged Votes

Elections : T.C. Members

(Major and Medium Irrigation systems)Name of the Water Users Association.....

(as per records)

Territorial Constituency No.

{

}

Sl. No.

Name of the voter

S.No. in voters list

Address of of voter and signature

Name of Challenger

Signature of identifier if any

Orders of Polling Officer

Signature of Challenger on Receiving refund of deposit

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Station:Date:Elections : TC members

(Major/Medium Irrigation Systems)

Signature.....Full name.....

(Polling Officer)

Institutions to the Polling Officer

Extract from Election Manual

Rule 19 Challenging of identity

(1)

Any election agent may challenge the identity of a person claiming to be a particular voter by first depositing a sum of Rupees ten in cash with the Polling Officer for each such challenge.

(2)

On such a deposit being made, the Polling Officer shall

(a)

warn the person challenged of the penalty for impersonation;

(b)

read the relevant entry in the voters list in full and ask him, whether he is the person referred to in the entry;

(c)

enter his name and address in the list of challenged votes in Form-11; and

(d)

request him to affix his signature in the said list.

(3)

The Polling Officer shall thereafter hold a summary inquiry into the challenge and may for that purpose:

(a)

request the challenger to adduce evidence in proof of the challenge and the person challenged to adduce evidence in proof of his identity;

(b)

put the person challenged any question necessary for the purpose of establishing his identity and request him to answer them on oath; and

(c)

administer an oath to the challenger and any other person offering to give evidence.

(4)

If after the enquiry, the Polling Officer considers that the challenge has not been established, he shall allow the person challenged to vote and if he considers that the challenge has been established, he shall debar the person challenged from voting and such person shall be handed over to the Police personnel on duty for further action.

(5)

If the Polling Officer is of the opinion that the challenge is frivolous or has not been made in good faith, he shall direct that the deposit made under sub-rule (1) be forfeited to the Government, otherwise he shall return it to the challenger at the conclusion of the enquiry and obtain acknowledgement.

(6)

The decision of the Polling Officer in sub-rule {4} and sub-rule (5) shall be final.

Election : TC members

(Major/Medium/Minor Irrigation Systems)

Form 12

Account of Voting Slips

TABLE

Name of the Water Users

Association.....

Name of the Polling

Station.....

Serial number of the Polling station

Territorial Constituency No.

{|

|-

|

|

| From

| To

|-

| Serial Number of

voting slips

|

| {|

|-

|

|}

|

| {|

|-

|

|}

|

|}

(A) Voting slips used at the polling station

(B) Voting slips used at the polling station but

not put in voting box

(1) Total voting slips received

(4) Voting slips cancelled for violation of voting procedure

(2) Details of voting slips unused (i.e.) not issued to voters

(5) Voting slips cancelled for other reasons

(a) With signature of the Polling Officer

(6) Voting slips used on tendered votes.

(b) Without signature of the Polling Officer

(7) Total voting slips not inserted in voting box [(4)+(5)+(6)]

(c) Total voting slips unused [(2A)+(2b)]

(8) Voting slips to be found in voting box

(3)-(7)

*(3) Voting slips used at the polling Station

(1)-(2c)

Station:

Signature.....

Date:

Full name.....

Elections : Farmers Organisations

(Polling Officer)

(Common for Major/Medium/Minor Systems)

* Serial numbers need not be given, only total is required.

Form 13

Result of Counting

(Election to the post of Members of Territorial Constituencies, Presidents, Vice-President, Chairmen, Vice-Chairmen)

?.....

(name of the farmers organisation)

Post.....

Irrigation

System.....

(name of the post)

(name of the irrigation system)

Village ?.....

Mandal.....

District.....

Date of counting ?.....

Sl.No.

Candidate's Name and father 's/husband name

Number of valid votes cast

Nos.

In Words

(1)

(2)

(3)

(4)

Total valid votes cast

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation Systems)

Result of Election (Contd....)

(Election to TC Member, President, Vice-President, Chairman, Vice-Chairman)

*(A) The highest number of valid votes are

polled in favour of the following candidate

Sri/Smt./Kum.....

(surname)

(Full name)

Son/wife/daughter of

Sri.....

(surname)

(Full name)

*(B) For equality of votes, lots have been drawn

and the lot has fallen in favour of

Sri/Smt./Kum.....

(sur name)

(Full name)

son/wife/daughter of

Sri.....

(sur name)

(Full name)

Signature.....

Full

name.....

(Election Officer)

1. Full name of the - Water Users Association/Distributory Committee/Project Committee.

2. Name of the Post - TC member/president/Vice-President/Chairman/Vice-Vhairman.

3. Name of the irrigation system - major/medium/minor irrigation systems.

* Strike out, whichever is not applicable.

Tallying of voting slips

(for election to TC members only)

(1) Total number of voting slips (as per voting

slips account)

{|

| No. of rejected voting

slips

| {|

|-

|

|}

|-

|

|-

| (2) total number of

voting slips actually found in the box

| {|

|-

|

|}

| Difference, if any (1)

- (2)

| {|

|
|
|}

|
|

| *(A) Certified that
the total number of voting slips found in the box are tallied
with that of voting slip account.

|
|

| *(B) Certified that
there is a discrepancy by votes.

|

| Station:

| Signature.....

|

| Date:

| Full
name.....

|
|

| (Election Officer)

|}

Elections : Farmers Organisations
(Common for Major/Medium/Minor Irrigation Systems)
Instructions to the Election Officer

1. Immediately after voting by all the members present, the Election Officer shall take out the voting slips from voting box and count or cause to count the valid votes polled to each candidate after rejecting the invalid votes as per Rules of election manual in the presence of all the members.
2. If the equality exists between the candidates and addition of one vote will lead to any of those candidates being declared elected, the election Officer shall decide between these candidates by drawing lot and declare elected, the person in whose favour the lot has fallen and shall enter such result in this form.
3. This form shall be prepared in duplicate and the original copy shall be displayed at the Election office for general public.
4. The Election Officer shall allow the following person at the place of counting.

(a)
Contesting candidates or Election Agent in case of TC member in major/medium irrigation system (only one at a time).

(b)
All polling officers who are also to participate in counting of votes.

(c)
Such persons to be known as Counting Officers and Counting Assistants as the Election Officer may appoint to assist him in the counting as may be necessary.

(d)
Persons authorised by the Government, or the Election Authority or the District Election Authority.

(e)
Personnel on duty in connection with the election.

Elections : TC Members
(Major and Medium Irrigation Systems)

Form 14-A

Identification and Fixing of tenure of Territorial Constituency members (By Lots)

Name of WUA..... Village.....Mandal..... District.....

T.C.No.

Tenure (Years)

Name of the elected Candidate

I will serve the organisation for the tenure

Mentioned in column (2) & (3) against my name Signature/thumb
impression of candidate

No. of years

in words

(1)

(2)

(3)

(4)

(5)

Station:Date:

Signature.....Full Name.....

(in capitals) (Election Officer)

Extract of Election Manual

35. Fixing the tenure of members of Territorial constituencies

(1)

After introduction of the concept of managing committee of Water Users Associations being a continuous bodies, the following procedure shall be adopted for fixing the tenure of members of Territorial Constituencies. However, this exercise is limited to the first election.

(a)

The members of the Territorial Constituencies elected for the first time will have different tenures i.e. 1 /3rd of the members will have two years term, another 1 /3rd members will have four years term and the remaining 1 /3rd members will have six years term.

(b)

After the election of members of Territorial Constituencies, to decide their individual tenure, lots shall be drawn before the conduct of election to the post of President and Vice-President is taken up and shall be recorded in Form 14A or Form 14B, as the case may be.

(c)

All members of Territorial constituencies elected in the ordinary elections held subsequently shall have a tenure of six years uniformly as per the provisions of the Act.

(2)

The following procedure shall be adopted to draw lots with regard to fixing of the tenure of the members of Territorial Constituencies elected in the 1st election.

(a)

For Major and medium Irrigation Systems

(i)

Twelve identical square chits of white paper of equal size shall be prepared. The Territorial Constituency numbers from 1 to 12 and the corresponding names of the candidates elected for that Territorial Constituency shall be written on the above chits. The chits shall be rolled along one side of the square chit so prepared. The rolled chits shall be kept in a single lot, herein after called the 'TC lot'.

(ii)

Four identical square chits of white paper of equal size on which the words "two years" shall be written on each and rolled as described above. In similar procedure four chits with the words "four years" and four more chits with the words "six years" shall be prepared. All these twelve rolled chits shall be kept as another lot, here in after called Tenure lot".

(iii)

To fix different tenures for the members of Territorial Constituencies, the election Officer shall pick out the chit from "TC lot" and shall also pick one chit from the "tenure lot" after through shuffling of chits in each lot.

(iv)

The Election Officer shall unroll the chits so picked from the two lots and shall announce aloud the name of the concerned member of the Territorial Constituency and corresponding tenure for which he has to hold the office. The Picked up chits, after announcement, shall be kept separately.

(v)

This information shall be simultaneously recorded in Form-14A and the signatures of the candidates present may be obtained and in case the candidate concerned is not present or he refuses to sign, then the Election Officer shall authenticate such entry with his signature.

(vi)

The Election Officer shall follow the same procedure till the tenures of all members of the Territorial Constituencies are decided upon.

Note. - (1) the chits prepared for drawing lots shall be truly identical in all respects to maintain secrecy and principle of natural justice and in no case no one shall be able to identify any particular chit with a particular Territorial Constituency number or name or any Territorial Constituency member.

(2)

The fixing of tenures of Territorial Constituency members shall be taken up in the presence of members available in the special Managing Committee meeting before the election of President and Vice-President.

(3)

Tenures shall be fixed for all the Territorial Constituencies. In a Water Users Association Irrespective of these posts are filled up after elections or not.

(4)

This whole exercise is limited to the first batch of elected members after the introduction of the concept of Water Users Associations being continuous bodies.

Elections :TC Members

(Minor Irrigation Systems)

Form 14B

Identification and Fixing of tenure of Territorial Constituency Members (By Lots)

Name of WUA..... Village.....Mandal..... District.....

T.C.No.

Tenure (Years)

Name of the elected Candidate

I will serve the organisation for the tenure

Mentioned in column (2) & (3) against my name Signature/thumb
impression of candidate

No. of years

in words

(1)

(2)

(3)

(4)

(5)

Station:Date:

Signature.....Full Name.....

(in capitals) (Election Officer)

Extract of Election Manual

35. Fixing the tenure of members of Territorial constituencies

(1)

After introduction of the concept of managing committee of Water Users Associations being a continuous bodies, the following procedure shall be adopted for fixing the tenure of members of Territorial Constituencies. However, this exercise is limited to the first election.

(a)

The members of the Territorial Constituencies elected for the first time will have different tenures i.e. 1 /3rd of the

members will have two years term, another 1 /3rd members will have four years term and the remaining 1 /3rd members will have six years term.

(b)

After the election of members of Territorial Constituencies, to decide their individual tenure, lots shall be drawn before the conduct of election to the post of President and Vice-President is taken up and shall be recorded in Form 14A or Form 14B, as the case may be.

(c)

All members of Territorial constituencies elected in the ordinary elections held subsequently shall have a tenure of six years uniformly as per the provisions of the Act.

(2)

The following procedure shall be adopted to draw lots with regard to fixing of the tenure of the members of Territorial Constituencies elected in the 1st election.

(b)

For Minor Irrigation Systems

(i)

There shall be 6 chits in the "TC lot" with serial number of Territorial Constituencies along with the corresponding names of the candidates elected for that Territorial constituency and the "TC lot" shall be prepared as described in sub-rule 2(a) above.

(ii)

in the "tenure lot" there shall be two chits containing the words as "two years", another two chits containing the words as "four years" and the balance two chits containing the words as "six years".

(iii)

For deciding the tenure of the Territorial constituency members, the Election Officer shall adopt the same procedure as described above, in the case of Major and Medium Irrigation Systems.

(iv)

This Information shall be simultaneously recorded in Form 14B and the signature of all the candidates present may be obtained and in case the candidate concerned is not present or the candidate refuses to sign, then the Election Officer shall authenticate such entry with his signature.

Note. - (1) the chits prepared for drawing lots shall be truly identical in all respects to maintain secrecy and principle of natural justice and in no one shall be able to identify any particular chit with particular chit with a particular Territorial Constituency number or name of any Territorial Constituency member.

(2)

The fixing of tenures of the Territorial Constituency members shall be taken up in the presence of members available. In the special Managing Committee meeting before the election of President and Vice-President.

(3)

Tenures shall be fixed for all the Territorial Constituencies. In a Water Users Association irrespective of these posts are filled up after elections or not.

(4)

This whole exercise is limited to the first batch of elected members after the introduction of the concept of Water Users Associations being continuous bodies.

Elections : Farmers Organisation

(Common for Major/Minor Irrigation Systems)

Form 15A

Declaration of Results

(Election to the posts of members of Territorial Constituency, President, Vice-President, Chairman, Vice-Chairman)

?.....

(name of the farmers organisation)

Post.....

Irrigation

System.....

(name of the post)

(name of the irrigation system)

Village ?.....

Mandal.....

District.....

Date of counting ?.....

In accordance with the Rules of the Election manual I.....Election Officer hereby declare that the following candidate has been duly elected *Unanimously/* After contest, for the above post.

Details of elected candidate

Name of candidate

Sri/Smt./Kum.....

(sur name)

(full name)

son/wife/daughter of

Sri.....

(sur name)

(full name)

Age

Years

Gender

{

Male

Female

|

| Educational

qualifications.....

|-

| Belongs to

| {

|-

| SC

| ST

| OBC

| BC

| OC

|}

| (please put () mark)

|-

| Extent of land

| (i) owned

| {

|-

|

|}

| acres

| (ii) leased

| {

|-

|

|}

| lacres

|-

|
|-
| Occupation.....
| Term of office
|
years
House
No.....
Street
Name.....
-
Town/Village.....
Mandal.....
-
District.....
Pin
code.....
-
Signature.....
-
Full
name.....
-
(Election officer)
-
Elections : Farmers
Organisation
-
(Common for
Major/Medium/Minor Irrigation Systems)
}

Instructions to the Election Officer

1. This form is common for the candidates who have been elected unanimously or also after contest for any post in Farmers Organisations.
2. This form shall be filled in with full details with neat handwriting and signed by the Election Officer on both the original and the duplicate copies immediately after the final results are displayed in the notice board at the Election office.
3. The duplicate copies of these forms shall be stitched in volumes Farmers Organisation-wise respectively and shall be deposited with the District Election Authority.
4. The Election Officer shall at test any corrections made in these forms (one signature for one correction).

* Strikeout, whichever is not applicable.

1. Full name of the - Water Users Association/Distributory Committee/Project Committee.
2. Name of the post - TC Member/President/Vice-President/Chairman/Vice-Chairman.
3. Name of the Irrigation system - Major/Medium/Minor Irrigation System.

Important:- The Election Officer shall fill in the Details of elected candidate" compulsory in this form before issue of election certificate in Form 16, as it is essential for building computer database of all elected members of all Farmers Organisation for the entire state.

Instructions to the District Election Authority

1. The original copies of these declaration forms complied TC/WUA/CD/PC - wise shall be sent to the Election Authority within 15 days after completion of respective elections.

2. The District Election Authority shall document and preserve the duplicate copies complied as above in the personal custody of a designated officer, in his office.

Elections : Farmers Organisations

(Common for Major/Medium/Minor Irrigation Systems)

Form 15B

List of Elected Candidates

(Election to the posts of members of Territorial Constituency, President, Vice-President, Chairman, Vice-Chairman)

?

.....

(name of the farmers organisation)

Village.....

Mandal.....

Date of counting.....

District.....

Sl.No.

Name of the candidate elected

Post to which elected

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.
- 8.
- 9.
- 10.
- 11.
- 12.
- 13.
- 14.

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation Systems)

Signature.....Full name.....

(Election Officer)

Instructions to the Election Officer

1. The Election Officer shall fill this form soon after competing the respective electrons in the Farmers Organisation on the day of election.

2. This form shall be prepared in duplicate and the original copy shall be displayed at the Election office for information of the general public.

3. The duplicate copy shall be retained in the book and will in the personal custody of the designated officer in the office of District Election Authority

Elections : Farmers Organisation

(Major/Medium/Minor Irrigation Systems)

Form 15C

Declaration of Casual Vacancies in Farmers Organisations

In exercise of the powers conferred under the

*Rule 14/*Rule 15/*Rule 16 of the Andhra Pradesh Farmers

Management of Irrigation Systems (conduct of elections) Rules,

2003.

I

the Election Officer for

the.....

(name of the farmers organisation)

declare the following post or posts as Casual

Vacancies, because the members of the Managing Committee of the

followings farmers organisation have failed to elect the

irrespective office bearer(s) in the special meeting held

on...../...../20..... for the following

reasons.

(a) *Lack of quorum (application to DC/PC
election)

(b) *No consensus among members

(c) *None of the Members turned up

(d) *Only one member turned up

(e) *The strength is elected members of Tc is
less than 50% of the total strength.

1) Name of the Post

i).....

ii).....

2) Name of Farmers

Organisation.....

Village.....

Mandal.....

District.....

Station :

Signature.....

Date :

Full name.....

(in capital) (Election Officer)

* Strikeout whichever is not applicable.

Government of Andhra Pradesh

Irrigation and Command Area Development Department

Form 16

Certificate of Election

I.....

Election Officer

(sur name)

(full name)

on

this.....of.....of.....

.....

(day in words)

(month in words)

(year in words)

declare that

Sri/Smt./Kum.....

(sur name)

(full name)

son/wife/daughter of

Sri.....
(sur name)
(full name)
has been duly elected
as.....
of.....
(name of the post)
?.....
.....
(name of the farmers organisation)
(name of the town/village)
of.....in.....
.....and
that in token thereof
(name of the mandal)
(name of the district)
this certificate of election is issued.
Station:
Signature.....
(Election Officer)
Date :
Specimen signature of thumb impression of
candidate elected
{
|
|-
|
|
|
|
|
|
|
|
Attested
Signature.....
-
(Election Officer)
}
Government of Andhra Pradesh : Irrigation & CAD Department
Elections to Farmers Organisation
.....District
Form 17
Cash Receipt
S.No.
Date.....
(Pre-printed)
Received the sum of Rs.....
(Rupees.....only) from
Sri/Smt./Kum

.....

(full name of the contesting candidate)

son/wife/daughter of

Sri..... towards the

non-refundable nomination fee for the election to the post of

.....in

?.....

(full name of WUA/DC/PC as per records)

in.....(Village)

of..... (Mandal)

Rs.

Signature ?.....

(Election Officer)

[Corrections if any, shall be attested by the

Election Officer]

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation

Systems)

Form 18

Abstract of Collections

(to be filled in by the Election Officer and verified by Collection Officer)

?.....

.....

(full name of WUA/DC/PC as per records)

Town/Village.....

Mandal.....

District.....

Post covered in receipt book

1.....

2.....

3.....

Receipt numbers in the book

from.....

to.....

Receipts used =

nos

Receipts un-used =

nos

(A)

Receipt-wise abstract

S.No

Receipt Number

Name of the contesting candidate

Name of the Post contested

Amount Rs. (figures)

(1)

(2)

(3)

(4)

(5)

1.

2.
3.
4.
5.
6.
7.
8.
9.
10.

Total for the page

Important. - For all unused receipts, please write as "NIL" in respective rows, in this form.

Elections : Farmers Organisation
(Common for Major/Medium/Minor Irrigation Systems)

Abstracts of Collection - (Continued)

S.No.
Receipt Number
Name of the contesting
Name of the Post contested
Amount Rs. (figures)

(1)
(2)
(3)
(4)
(5)

11.
12.
13.
14.
15.
16.
17.
18.
19.
20.

total from previous page

Grand total for the receipt book

Important. - For all unused receipts, please write as "NIL" in respective rows, in this form.
(Rupees.....Only)

[All corrections shall be attested by the Collection Officer]

Elections : Farmers Organisation
(Common for Major/Medium/Minor Irrigation Systems)

Abstract of Collections - (Continued)

(B)

Post - wise abstract

Name of the post
Total No.of Contestants
Total Amount Received

(1)
.....
nos.
Rs.

(2)

.....

nos.

Rs.

(3)

.....

nos.

Rs.

Grand Total

nos.

Rs.

(Rupees.....Only)

(C)

Certificate by the Election Officer

Certified that the above abstract of receipts are tallying with the duplicate receipts and the amounts for the respective posts are fully collected from all the candidates to whom nomination forms were issued by me.

Number of nomination forms received

=

nos.

issued

=

nos

Balance returned

=

nos

Station :

Signature.....

Date :

Full name.....

(Election Officer)

[All corrections shall be attested by the
Collection Officer]

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation
Systems)

Abstract of Collections - (Continued)

(D)

Verification Certificate by the Collection Officer

I have verified the entries with the duplicate
receipts and "found correct/"corrected as per records.

Station :

Signature.....

Date :

Full name.....

(in capitals) (Collection Officer)

(E)

Office address of the Election Officer who has collected the nomination fee

1. Full

name.....

2. Designation in his parent

department.....

3. Name of the parent department from where
deputed.....

?.....

4. Full office address

?.....

?.....

?.....

5. Phone Numbers :

(Res)..... (Office)

?.....

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation
Systems)

*Strikeout, whichever is not applicable.

Form 19

General Abstract

(To be filled in by the Collection Officer and verified by the Chief Officer)

.....District

(name of the district)

Post contested 1..... 2..... 3.....Serial numbers of
Acknowledgement forms from..... to.....

Acknowledgement forms used

=

nos.

Acknowledgement forms un-used

=

nos.

(A)

Acknowledgement Book-wise abstract

S.No.

S.No. of Acknowledgement

Name of the Farmers organisation with village
and Mandal

Name of the Post (s) contested

Total Amount Rs.

(1)

(2)

(3)

(4)

(5)

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

Total for the page

Important. - The above entries shall be taken from each acknowledgement form

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation) System)

General Abstract - (Continued)

S.No.

S.No. of Acknowledgement

Name of the Farmers organisation with village

and Mandal

Name of the Post (s) contested

Total Amount Rs.

(1)

(2)

(3)

(4)

(5)

11.

12.

13.

14.

15.

16.

17.

18.

19.

20.

Grand total for acknowledgement book

Important. - The above entries shall be taken from each acknowledgement form.

(Rupees.....)

[Corrections if any, shall be attested by the Chief Officer]

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation Systems)

General Abstract - (Continued)

(B)

Post-wise Abstract

Name of the post

Total No.of Contestants

Total Amount Received

(1)

.....

nos.

Rs.

(2)

.....

nos.

Rs.

(3)

.....

nos.

Rs.

Grand Total

nos.

Rs.

(Rupees.....Only)

Important. - To fill above abstract, the similar abstracts prepared by the Election Officers for the individual receipt books shall be referred to.

(C)

Certificate by the Collection Officer

* 1. Certified that the above General abstract

is tallying with corresponding abstracts of each receipt book,
prepared by the Election Officers.

*2. Certified that the above General Abstract is
verified and corrected as per the corresponding abstracts of each
book prepared by the Election Officers.

Station :

Signature.....

Date :

Full name.....

(in capitals) (Chief Officer)

[All corrections shall be attested by the Chief
Officer]

Elections: Farmers Organisations

(Common for Major/Medium/Minor Irrigation
Systems)

* Strikeout, whichever is not applicable.

General Abstract - (Continued)

(D)

Verification Certificate by the Chief Officer

Certified that I have verified the total amounts
entered in the acknowledgement forms of Collection Officers with
that of individual abstracts of Collections, submitted by the
Election Officers and this general abstract with Acknowledgement
forms and found correct/ ?Corrected as per records.

Station:

Signature.....

Date:

Full name.....

(in capitals) (Chief Officer)

Important. - The Chief Officer shall arrange for reconciliation of the total amounts of the general abstract with District
Treasury Office and send the reconciliation statement to the Election Authority within fifteen days.

(E)

Office address of the Collection Officer who has collected the records from the Election Officers

1. Full

name.....

2. Designation in his parent

department.....

3. Name of the parent department where from
deputed

4. Full office

address.....

?.....

?.....

5. Phone Numbers : (Res)

.....

(Office).....

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation
Systems)

Form 20

Acknowledgement

(for receipt of nomination fee from Election Officers, to be filled in by collection officer)

S.No.:

1. Name of Farmers

Organisation.....

(name of the name of WUA/DC/PC as per records)

2.

Town/Village.....

Mandal.....

3.

District.....

4. Name of the Election Officer

.....

Designation (in parent

dept).....

Office address (in parent

dept).....

5. Abstract of receipt books

Book No.

Serial Number of receipt

Number of receipts

Total amount collected

From

To

Used

Unused

Rs.

Rs.

6. Total Amount deposited by Election Officer

(Rupees.....Only)

7. Treasury challan No

Dated ?..... /20.....

(Received from Election Officer)

Station :

Signature

Date :

Full name.....

(Collection Officer)

Important. - The Collection Officer shall verify the Abstract of receipt book with that of duplicate receipts for the amounts collected before issuing this receipt.

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation Systems)

Form 21

Acknowledgement for Records

(for receipt of election records from the Collection Officers)

(to be filled in by election officer and verified by officer receiving records)

1. Name of the Collection Officer from whom records are received Sri/Smt./Kum.

2. Designation (parent dept)

3. Office address (parent dept)

4. Records received

(as per annexures 1 to 4 enclosed)

(a) Receipt books

?.....nos (in

words.....)

(as per Annexure - 1)

(b) Challans

?.....nos (in

words.....)

(as per Annexure - 2)

(c) acknowledgement book

?.....nos (in

words.....)

(as per Annexure - 3)

(d) Ovher records received

.....nos (in words.....)

(as per Annexure - 4)

Station :

Signature.....

Date :

Full name.....

(officer receiving records in District Election Authority Office)

Important. - 1. Original of this acknowledgement form shall be given to the Collection Officer and duplicate shall be retained in this book.

2. Annexures shall be in single copy and retained in this book and kept under the custody of the officer who receives and preserves the records.

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation Systems)

ANNEXURE 1

Details of Receipt books

(to be filled in by collection officer and verified by officer receiving records)

Name of the Collection Officer.....

Designation.....

S. No.

Receipts Book

Receipts Numbers

Total Receipts

From

To

Used

Unused

1.

2.

3.

4.

5.

6.
7.
8.
9.
10.
11.
12.
13.
14.
15.

Handed overSignatureFull name :Elections : Farmers Organisation
(Common for Major/Medium/Minor Irrigation Systems)

Taken overSignature...Full name.....

Annexure 2

Details of Treasury Challan

(to be filled in by collection officer and verified by officer receiving records)

Name of the Collection Officer.....

Designation.....

S. No.

Challan Number

Date

Amount (Rs.)

1.
2.
3.
4.
5.
6.
7.
8.
9.
10.
11.
12.
13.
14.
15.

Handed over

Taken over

Signature

Signature.....

Full name :

Full name,.....

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation
Systems)

Annexure 3

Details of Acknowledgement Books

(to be filled in by collection officer and verified by officer receiving records)

Name of the Collection Officer.....Designation.....

S.No.

Acknowledgement Books No.

Serial Number

Remarks(Rs.)

From

To

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

11.

12.

13.

14.

15.

Handed over

Taken over

Signature

Signature.....

Full name :

Full name,.....

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation

Systems)

Annexure 4

Details of other records, booklets of declaration form, voting slips other election forms in bundles

(to be filled in by collection officer and verified by officer receiving records) Name of the Collection Officer.....)

S.No.

Description of

Records

Quantity

Remarks

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

11.

12.

13.

14.

15.

Handed over

Taken over

Signature

Signature.....

Full name :

Full name,.....

Elections : Farmers Organisation

(Common for Major/Medium/Minor Irrigation
Systems)

Form 22

Letter of complaint to the Station House Officer

To

The Station House Officer,

.....

.....

Sub: - Election to

(name of the water user association)

Impersonation at Polling Station.....

(name of polling station) (number)

Date of Poll...../...../ 20.....

Sir,

I am handing over a person, who claimed to
Sri/Smt.....(Serial No in voters list) belonging
to.....

(name of water association)

.....but he could not prove himself to be this voter. In my opinion he is an imposter. I am to request
you to take necessary action as required under 171-F of the Indian Penal Code.

Yours faithfully,

Station :

Signature.....

Date :

Full

name.....

(Polling Officer)

.....Cut Here.....

Receipt

The above letter and the person referred to therein were handed over to me at.....(hour) on...../...../
20.....by the Polling Officer.

Signature.....

Full

name.....

(Station House
Officer)

Elections : Farmers

Organisation

(Common for

Major/Medium/Minor Irrigation Systems)

Form 23A

List of Polling Stations

In exercise of the powers conferred under Rule 9 of Election Manual under the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules, 2003, the District Election Authority.....District, hereby published the list of Polling Stations together with the areas or groups of voters for which they have been provided in respect of.....

(name of the water users association)

S.No.

Territorial

Constituency Number

Location of Polling

Station

Serial Number of

Voters as per voters list

Place

Name of Building/

Office

Village and Mandal

(1)

(2)

(3)

(4)

(5)

(6)

Any objections to the formation of above Polling Stations shall be submitted to the undersigned before 5.00 P.M. on...../...../ 20 by the members/voters of the.....

(name of the water users association)

Station :

Signature.....

Date :

Full

name.....

(in capitals)

(District Election Authority)

Elections : Farmers

Organisation

(Common for

Major/Medium/Minor Irrigation Systems)

Form 23B

Final List of Polling Stations

(A)

*Where as the objections received against Form-23A displayed on...../...../20.....have been considered and thoroughly examined/ whereas no objections are received against Form - 23A.

And whereas it is considered that no amendments to Form 23A are considered necessary and therefore the polling stations with other particulars already displayed in Form 23A in respect of.....are final

(name of water users association)

OR

(B)

*And whereas it is considered that the amendments to Form 23A are considered necessary; and accordingly they are hereby made and revised in the table hereunder in exercise of the powers conferred under rule 9 of Election Manual under the Andhra Pradesh Farmers Manangement of Irrigation System (conduct of elections) Rules, 2003 in respect of.....

(name of the water users association)

S.No.
Territorial
Constituency Number
Location of Polling
Station
Serial Number of
Voters as per voters list
Place
Name of Building/
Office
Village and Mandal

(1)
(2)
(3)
(4)
(5)
(6)

*Strikeout whichever is not applicable.

Station :

Signature.....

Date :

Full

name.....

(in capitals)

(District Election Authority)

Elections ; Farmers

Organisation

Elections ; Farmers

Organisation

(Common for Major/Medium/Minor Irrigation Systems)

Form 24A

List of Venue for Extra Ordinary General Body Meeting

In exercise of the powers conferred under Rule 9 of Election Manual of the Andhra Pradesh Farmers Management of Irrigation Systems (conduct of elections) Rules, 2003, the District Election Authority.....District, hereby publish the list of Polling Station together with the areas or groups of voters for which they have been provided in respect of.....

(name of the water users association)

S.No.

Territorial

Constituency Number

Vanue for Extra Ordinary Meeting

Serial Number of

Voters as per voters list

Place

Name of Building/

Office

Village and Mandal

(1)
(2)
(3)
(4)

(5)

(6)

Any objections to the formation of above Polling Stations shall be submitted to the undersigned before 5.00 P.M. on...../...../ 20..... by the members/voters of the.....

(name of the water users association)

Station :

Signature.....

Date :

Full

name.....

(in capitals)

(District Election Authority)

Elections: Farmers

Organisations

(Minor Irrigation

Systems)

Form 24-B

Final

List of Venue for Extra Ordinary General Body Meeting

(A)

'Where as the objections received against Form-24A displayed on.....// 20..... have been considered and thoroughly examined/ whereas no objections are received against Form - 24A.

And whereas it is considered that no amendments to Form 23A are considered necessary and therefore the polling stations with other particulars already displayed in Form 24A in respect of.....are final.

(name of water users association)

OR

(B)

*And whereas it is considered that the amendments to Form 24A are considered necessary: and accordingly they are hereby made and revised in the table hereunder in exercise of the powers conferred under rule 9 of Election Manual under the Andhra Pradesh Farmers Management of Irrigation System (conduct of elections) Rules, 2003 in respect of.....

(name of the water users association)

S.No.

Territorial

Constituency Number

Venue for Extra General Body Meeting

Serial Number of

Voters as per voters list

Place

Name of Building/

Office

Village and Mandal

(1)

(2)

(3)

(4)

(5)

(6)

*Strikeout whichever is not applicable

Station :

Signature.....

Date :

Full

name.....

(in capitals)

(District Election Authority)

Related AI tags, queries and research notes

Translation